

A Text Book of Human Rights

This text book exemplifies that belief, offering a comprehensive and insightful exploration of human rights that is both academically rigorous and deeply humane. Human rights are the foundation of a just and equitable society. Yet, their true understanding often remains confined to legal jargon or theoretical discourse. This book's structure—beginning with fundamental rights like liberty and equality, expanding into critical issues such as women's rights, child rights, and labour rights, and concluding with redressal mechanisms—reflects a thoughtful pedagogical approach. Each chapter not only informs but also challenges readers to reflect on real-world applications, making it an invaluable resource for students, educators, and activists alike. What sets this book apart is its unwavering commitment to justice, inclusivity, and empowerment. The detailed analysis of constitutional provisions, international conventions, and case studies ensures that readers grasp both the legal framework and the lived realities of human rights violations.



Dr. S. Kalaimani is an accomplished academician and researcher in the field of zoology. He has been actively involved in teaching and research for over 20 years, with extensive experience in undergraduate and postgraduate education. Since 2018, he has been serving as an Assistant Professor at JKK Nataraja College of Arts and Science, Komarapalayam.



**Scholars'
Press**

Kalaimani Subramani
Ramesh S. V.
Kavitha Loganathan

A Text Book of Human Rights
A Revised Syllabus based on Periyar University

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Imprint

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A TEXT BOOK OF HUMAN RIGHTS

(A Revised Syllabus based on Periyar University)

YEAR - 2025

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LETTER OF APPRECIATION

I am pleased to extend my heartiest appreciation for the "**TEXT BOOK OF HUMAN RIGHTS**" (Revised Syllabus based on Periyar University, 2025), authored by my esteemed colleague and dear friend, Dr. S. Kalaimani. As a professor with a deep interest in human rights, I believe that education is the most powerful tool for social transformation. This textbook exemplifies that belief, offering a comprehensive and insightful exploration of human rights that is both academically rigorous and deeply humane. Human rights are the foundation of a just and equitable society. Yet, their true understanding often remains confined to legal jargon or theoretical discourse. Dr. Kalaimani's work bridges this gap with remarkable clarity, presenting complex concepts in an accessible manner while retaining their intellectual depth. This book's structure—beginning with fundamental rights like liberty and equality, expanding into critical issues such as women's rights, child rights, and labour rights, and concluding with redressal mechanisms—reflects a thoughtful pedagogical approach. Each chapter not only informs but also challenges readers to reflect on real-world applications, making it an invaluable resource for students, educators, and activists alike. What sets this book apart is its unwavering commitment to justice, inclusivity, and empowerment. The detailed analysis of constitutional provisions, international conventions, and case studies ensures that readers grasp both the legal framework and the lived realities of human rights violations. The sections on gender equity, domestic violence, and child labour are particularly poignant, shedding light on issues that demand urgent societal attention. As someone who has known Dr. Kalaimani for years, I can attest to his passion for education and social justice. His interdisciplinary expertise brings a unique perspective to this work, blending scientific precision with compassionate advocacy. This book is more than a syllabus-based guide; it is a call to action. I commend Dr. Kalaimani for this exceptional contribution and am confident that it will inspire generations to uphold the dignity and rights of every individual.

Sincerely,

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Dr. S. KALAIMANI

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UNIT I

RIGHT TO LIBERTY

The right to liberty and security protects the right of a person not to be arbitrarily deprived of their liberty.

Deprivation (lack) of liberty

Article 5 is not concerned with mere restrictions on freedom of movement. The difference between restrictions on liberty and deprivation of liberty is one of degree or intensity and depends on the type of measure imposed, its duration and effects and how it is implemented.

Right to Liberty and Security of Person

Section 18 of the Human Rights Act 2004 says that:

- (1) Everyone has the right to liberty and security of person. In particular, no-one may be arbitrarily arrested or detained.
- (2) No-one may be deprived of liberty, except on the grounds and in accordance with the procedure established by law.
- (3) Anyone who is arrested must be told, at the time of arrest, of the reasons for the arrest and must be promptly told about any charges against him or her.
- (4) Anyone who is arrested or detained on a criminal charge— (a) Must be promptly brought before a judge or magistrate; and (b) Has the right to be tried within a reasonable time or released.
- (5) Anyone who is awaiting trial must not be detained in custody as a general rule, but his or her release may be subject to guarantees to appear for trial, at any other stage of the judicial proceeding, and, if appropriate, for execution of judgment.
- (6) Anyone who is deprived of liberty by arrest or detention is entitled to apply to a court so that the court can decide, without delay, the lawfulness of the detention and order the person's release if the detention is not lawful.
- (7) Anyone who has been unlawfully arrested or detained has the right to compensation for the arrest or detention.

(8) No-one may be imprisoned only because of the inability to carry out a contractual obligation.

Note: Under the Act, all rights may be subject to reasonable limits (section 28). The nature of the right is relevant when considering what is reasonable. This factsheet is not intended to be a substitute for legal advice.

SCOPE OF THE RIGHT

The right to liberty means that persons must not be subject to arrest and detention, except as provided for by law. Their arrest and the detention must also not be arbitrary. This right applies to all forms of detention where people are deprived of their liberty, not just criminal justice processes. This can be relevant any time a person is not free to leave a place by his or her own choice. The right to security requires the Territory to provide reasonable measures to protect a person's physical security. The Government does this, for example, through the work of the police and emergency services. This right differs from the freedom of movement in section 13 of the Act, because a person must be 'detained' to suffer a deprivation of liberty.

The rights in subsections 18(4)–(7) are relevant after a person has been arrested or detained. Some of these rights are also reflected in the criminal law of the Act, such as the Crimes Act 1900 and the Bail Act 1992. In practice, these guarantees mean that when arresting a person, the police must immediately inform him or her of the reason for the arrest and arrange for them to be brought before a court for a preliminary hearing (usually to determine bail). Even if someone is detained without charges being laid, this should not take more than 24 hours. This helps to ensure that no one is detained on an unfounded suspicion or for an improper purpose. Section 18(4), which provides that a person who has been charged with an offence must be brought to trial without unreasonable delay, overlaps with section 22(2) (c) of the Human Rights Act, because it is also an essential element of a fair trial.

EXAMPLES OF WHEN THIS RIGHT COULD BE RELEVANT IN PRACTICE

The actions of public authorities can both promote and limit rights. Section 18 could be engaged by activities that:

- Authorize a person with a mental illness to be detained for treatment in a mental health facility and facilitates review of their detention;
- Provide for the interim detention of a person whether or not he or she is suspected of committing an offence (for example, to prevent the spread of a contagious disease, or enable a person to ‘sober up’);
- Provide for special powers of detention of people for purposes including national security;
- Make provision for granting of bail;
- Relate to the management of security of anyone in the care of public authorities, particularly those in involuntary care;
- Make it an offence for a person to fail to remain at a place (for example, for further questioning or to conduct a search or test by a police officer or other official);
- Allow a public authority to cordon an area and control movement within that area;
- Grant a power of arrest.

RIGHT TO LIFE

Everyone has the right to life, liberty and the security of person.’ The right to life is undoubtedly the most fundamental of all rights. All other rights add quality to the life in question and depend on the pre-existence of life itself for their operation. As human rights can only attach to living beings, one might expect the right to life itself to be in some sense primary, since none of the other rights would have any value or utility without it. There would have been no Fundamental Rights worth mentioning if Article 21 had been interpreted in its original sense. This Section will examine the right to life as interpreted and applied by the Supreme Court of India.

Article 21 of the Constitution of India, 1950 provides that, “No person shall be deprived of his life or personal liberty except according to procedure established by law.” ‘Life’ in Article 21 of the Constitution is not merely the physical act of breathing. It does not mean mere animal existence or continued hard work through life.

It has a much wider meaning which includes right to live with human dignity, right to livelihood, right to health, right to pollution free air, etc. Right to life is fundamental to our very existence without which we cannot live as human being and includes all those aspects of life, which go to make a man's life meaningful, complete, and worth living. It is the only article in the Constitution that has received the widest possible interpretation.

Article 2 Right to life

The right to life contained in Article 2:

- Imposes an obligation on the State to protect the right to life.
- Prohibits the State from intentionally killing.
- Requires an effective and proper investigation into all deaths caused by the State.

PROTECTS THE RIGHT TO LIFE

Article 2 requires that the Government take steps to safeguard the lives of everyone within the UK's jurisdiction by:

- Having effective criminal legislation (i.e. making murder and manslaughter an offence) and properly enforcing it.
- Requiring the police to take reasonable steps to protect an individual's life if they know or ought to know that there is a real and immediate risk to them - although this should not impose an impossible or disproportionate burden on the authorities.
- Requiring the State to take appropriate steps to prevent accidental deaths by having a legal and administrative framework in place to provide effective deterrence against threats to the right to life Prohibits intentional killing.
- The State is expressly prohibited from taking life. However, there will be no breach of Article 2 if death results from the use of force that is no more than absolutely necessary:
 - In self-defense or the defense of any person from unlawful violence.
 - To lawfully arrest someone or prevent the escape of a person lawfully detained.

- To take action lawfully to quell a riot.

The key test here is that the use of force is no more than ‘absolutely necessary’. This requires that consideration be given to all dangers and risks and whether a situation was planned and controlled. The Government must also ensure that police and security services that are faced with situations where the use of poisonous force is possible must be appropriately trained, instructed and given strict guidance as to when officers can use arms.

Investigations and inquests

Article 2 also requires that there be an effective official investigation into deaths resulting from the State’s use of force and where the State has failed to protect life. Such an investigation must:

- • Be brought by the State on its own initiative (i.e. relatives of the victim should not have to push for an inquiry).
- • Be independent and effective.
- • Be reasonably prompt.
- • Be open to public scrutiny and involve the victim’s next of kin.

Examples of ‘Right to Life’ Cases

A mentally ill patient

A mother of two suffered from periodic bouts of depression and psychosis. For most of the time she was well, happily married and able to hold down a regular job. Every few years she would become unwell and require admission to hospital. On this occasion, she was admitted because it was clear that she was a risk to herself. She was supposed to be checked regularly by staff but this did not happen. She wandered out of the ward, off the hospital site, walked two miles into the next town and threw herself under a train before the staff even noticed she was missing.

Her daughter wanted to know how this could have happened. The daughter brought a claim under Article 2. The court decided that there had been a real and immediate risk of harm to the patient, and that staff had not taken appropriate steps to minimise the

risk. Because of this, it was decided that the hospital had failed to protect the patient, and her right to life had been violated.

A young prisoner

A first-time offender was sentenced to three months in jail for theft. He was Asian and just 19 years old. He was placed in a cell with a disturbed and well-known racist who spent the last three years in prison for a number of offences, some of them violent. The night before he was due to be released, the first-time offender was beaten to death by his cellmate. The family called for a public inquiry into the killing, which the Government resisted in the courts. The House of Lords, our highest court (now the Supreme Court), eventually held that Article 2 required a public inquiry in a case such as this. The subsequent inquiry uncovered wide-ranging evidence of racism in prisons and concerns about the treatment of young men in Young Offender Institutions.

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UNIT II

RIGHT TO EQUALITY

Article 14

It is the core article under Right to Equality. It deals with two kinds of rights. It states that the State shall not deny to any person

- (a) Right to equality before the law.
- (b) Right to Equal Protection before the law.

(A) Right to Equality before the law

It is a negative concept because it means that no man is above the law or in other words all individuals are subject to the Law of the land. Rule of law means the absolute supremacy of ordinary law of land as opposed to the influence of arbitrary power of the ruler.

THE THREE PRINCIPLES WHICH GOVERN THE RULE OF LAW ARE:

- No man shall be punished either in body or goods (material) except for the violation of law in force. Further, the violation of law shall be established in an ordinary court of land in an ordinary legal manner.
- All individuals irrespective of their social or economic understanding are subject to ordinary law of land. Further, all the individuals are subject to the jurisdiction of the court. i.e. all individuals can be sued before the court. A person can appear before the court in form of attorney or himself.
- The constitution is the result of ordinary Law of land.

However, the third rule had been modified in its application under the Indian constitution where the third law reads as the Constitution is Supreme law of Land and all laws passed by the legislature shall conform to it to be legally valid.

SIGNIFICANCE OF RULE OF LAW

- It is the adoption of rule of law that has changed the constitution from Rex Lex (king is law) to Lex Rex (Law is king)
- The rule of law is essential to maintain an individual's liberty. Therefore, Rule of law is an essential feature of democracy.

Protection of Rule of Law:

The constitution under article 32 and 226 confers the power on Supreme Court and the High Court's respectively to safeguard the Rule of law by exercising the writ jurisdictions. Further the constitution emphasizes that the Rule of Law is an immutable Principle of Governance of the Country. In Keshava Nanda Bharati Vs State of Kerala, 1973 case Supreme Court held that the Rule of Law is a part of basic structure of the constitution and cannot be destroyed.

Exceptions to the Rule of Law

- Article 361- The President or the Governor of State is not answerable to a court of law with regard to exercise of its executive functions.
- No criminal proceedings whatsoever can be instituted against the President and Governor of State during his/her term of office. He should be first removing impeached to continue the proceedings against him.
- No civil proceedings in which relief is claimed can be instituted against the President or the Governor of State in a court, except of the expiry under a 2-month notice served on the President and Governor.
- According to the International Laws- The visiting subject to the jurisdiction of local court.

(B) Equal protection before Law

- It originated as a concept in USA.
- It is a positive concept.
- It means equality of treatment in equal circumstances. Among equals the law shall be equal and equally administered. "The like should be treated alike". All the persons placed in equal circumstances shall be treated similarly. Therefore, it ensures equality among equals. It does not mean inequality among equals.
- It allows State to classify individuals on a reasonable basis into similar groups. Once such a classification is made, the law shall apply equally among all the people within a group. Then no person within a group shall be treated differently. However, the State is free to discriminate people between the groups.

- The concept of equal protection before law is also called “Positive Discrimination” on the Part of the State and the policy of reservation is legally justified under it.
- This concept is based on the Aristotelian Principle that ‘Equality can exist only among the equals and equality cannot exist among unequal.

Thus, the Legislative may:

- Exempt certain classes of property from taxation such as charities, libraries etc.
- Impose different specific taxes upon different trades and professions.
- Tax income and property of individuals in different manner etc.

In simple the right to equality is one of the six rights that have been granted to us. In the Indian Constitution this right has been described as “The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.”

RIGHT AGAINST EXPLOITATION

One of the fundamental rights, right against exploitation, protects in article 23 and 24, proffers two major provisions. First is the abolition of forced labor and second is the abolition of employing of the children younger than 14 years of age in hazardous jobs like in mines and factories. In fact, child labor is regarded as a gross infringement of provisions and spirit of the constitution of the country. Beggary has been proclaimed as a crime and punishment is meted to the individuals indulging in this, by law. Trafficking of humans for slavery or prostitution is strictly banned by the law. An exception is framed in employment irrespective of the payment for mandatory and compulsory services just for public. Mandatory military recruitment is also covered under this provision.

Article 23 (Prohibition of Traffic in Human Beings and Forced Labour)

This article stops trafficking of human beings, beggary and several other forms of forced drudgery. The meaning of human trafficking is compelling people into servitude, slavery and also forcing women, handicapped persons and children into activities full of immorality. The meaning of Bandhua or Begar is a forced labor without or with payment. Article 23 (1) grants authority to the State for providing

prescribed punishment for infringement of the rights, by law. The constitution has made the Act of Immoral Traffic Prevention, which punishes the individuals for breach of the Article 23. Article 23 (2) grants authority to the state for providing mandatory services on citizen provided ordinary interest of the state will not cause any difference on class, caste, religion, rate or anything of such sort. For instance, the individuals are liable to be forced for providing services to the needy during natural calamities.

Article 24 - Prohibition of Employment of Children in Factories etc.

It stops the employment of kids younger than the 14 years of age in any mine or factory or even any dangerous employment. This particular prohibition is just and fair and does not confess any exception for employing children in a mine or factory etc. The Constitution has made Child Labor Act 1986. This particular act identified fourteen industries coming under the group of hazardous industries.

EDUCATIONAL RIGHTS

The right to education is a fundamental human right. Every individual, irrespective of race, gender, nationality, ethnic or social origin, religion or political preference, age or disability, is entitled to a free elementary education. Free and compulsory education to all children up to the age fourteen is constitutional commitment in India.

CONSTITUTIONAL FRAMEWORK ON RIGHT TO EDUCATION

The Constitution of India provides Fundamental Rights under Chapter III. These rights are guaranteed by the constitution. One of these rights is provided under article 21(A) which read as follows:

Article 21(A):

“The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine.” It is obligatory on every male and female to get education, acquire learning and search for knowledge. The woman has got equal right with the men to acquire education and learning. Education makes a woman to become a good wife, mother, good human being and a useful citizen. The various international conventions and covenants on

human rights provide that women shall be provided same conditions for careers and vocational guidance as that of men. They shall be provided same access to studies for the achievement of diplomas in educational establishment. Equality shall be provided in pre-school, general, technical, professional and higher education as well as in all types of vocational training. Women shall have access to the same curricula the same examinations, and use equipment of the same quality as to that of men.

WOMEN HAVE THE FOLLOWING RIGHTS RELATING TO EDUCATION.

1. Right to education
2. Right to choose the kind of education.
3. Right to access to same curricula, the same examination and same standard of education as to that of men.
4. Right to participate actively in sports and physical education.
5. Equality of right in preschool, general, technical, professional and higher technical education as to that of men.
6. Equal opportunities for access to programs of continuing education, including 9. adult literacy programs.
7. Equal conditions of access to, and study in, educational institutions of all types, including universities and vocational, technical and professional schools.

SOCIAL & CULTURAL RIGHTS

Economic, Social & Cultural rights are related to the guarantee of minimum necessities to the life of human beings. In the absence of these rights, the existence of human beings is likely to be endangered. It has been rightly realized by the developing countries that civil & political rights have no meaning unless they are accompanied by social, economic & cultural rights.

- Right to food and clean water
- Right to adequate housing and shelter
- Right to health
- Right to education
- Linguistic rights

- Access to places of entertainment, sports and culture
- Access to media and information technologies
- Right to clean and safe environment

Right to food and clean water:

- It is guaranteed by ICESCR. Article 11(1) of ICESCR includes adequate food as a component of an adequate standard of living. Article 11(2) of ICESCR refers to the fundamental right of everyone to be free from hunger.
- It is the responsibility to provide adequate nutritious food and clean drinking water, taking into account the danger and risks of environmental pollution.
- Adequate food must be accessible to everyone including physically vulnerable individuals, such as infants and young children, elderly people, the physically disabled, etc.
- In addition to adequate food, adequate water is essential to life. The human right to water entitles everyone to sufficient, safe, acceptable, physically accessible and affordable water for personal and domestic uses.
- An adequate amount of safe water is necessary to prevent death from dehydration, cooking, personal and domestic hygienic requirements.
- The DPSP under article 47, 39(a) and 39(b) of the Indian Constitution highlighting the same.
- Article 47 spells out the duty of the state to raise the level of nutrition and standard of living of its people as a primary responsibility.
- Article 39(a) requires the state to direct its policies towards securing the right to an adequate means to livelihood.
- Article 39(b) further requires that the ownership and control of the material resources of the community as so distributed as to best serve the common good.

Right to adequate housing and shelter:

- Having a secure place to live is central to life with dignity.
- Adequate housing not only meets the need for shelter from the elements, but also for physical security and personal privacy.
- Right to housing is one of the most troubled rights in the Indian constitution.
- Right to shelter includes adequate living space, safe and decent structure, clean and decent surroundings, sufficient light, pure air and water, electricity, sanitation and other civic amenities.

Right to health:

- The right to health is guaranteed in Article 12(1) of the ICESCR.
- It includes the protection of health and strength of workers, men and women, and of the tender age of children to develop in a healthy manner and conditions of freedom and dignity.
- Right to health for women includes Maternal rights as well as benefits that woman can have.

Right to education:

Education is a social right that is intimately connected to the exercise of many other human rights.

CULTURAL RIGHTS**Linguistic rights:**

Language is an important element of the right to culture. Freedom to express oneself in one's own language or communication system is an important component of linguistic rights.

Access to places of entertainment, sports and culture:

- Equal participation in the cultural life of one's own community promotes an inclusive society that encourages full participation of persons with disabilities
- Article 15 ICESCR reads,
- To take part in cultural life,
- To enjoy benefits of scientific progress.

Access to media and information technologies:

- Article 19 of the UDHR states, everyone has the right to seek, receive and impart information and ideas through any media and regardless of frontiers.
- Right to clean and safe environment:
- The need for environment is seen as a necessary defense against deteriorating quality of life world-wide.

1. Right to Life:

The right to life is a basic civil right. Without this right, there can be no safety either for the individual or for the society. However right to life does not mean the right to end life or to commit suicide. Suicide is a crime against the society and the self.

2. Right to Family Life:

Right to family life is of great significance for the continuation of human race. Every state recognizes the sanctity of family life and the institution of marriage. One can marry the person of his/her choice and produce children. But state can make some laws for regulating family welfare. These can deal with bigamy, polygamy, polyandry, marriage, divorce, property, rights of family children, succession, etc.

3. Right to Education:

Education for a human being is as essential as air, food and water. Unless the people are educated, they cannot really participate in the working of society and government. Uneducated persons cannot understand the issues and problems, express their views, and criticize the government. This is the reason that now almost every state gives every opportunity to its citizens to get education. Without right to education, no citizen can really hope to develop his faculties.

4. Right to Personal Freedom:

Right to personal freedom is absolutely essential for the mental and physical growth of individual. But this does not mean that the individual can do whatever he likes. Right to personal freedom can be enjoyed in accordance with the laws made by the state and also in accordance with the interests of society.

5. Right to Religious Freedom:

In a democratic and secular state right to religious freedom is also given to its citizens. State does not impose any religion on them and they are free to adopt any religion, and establish their religious institutions.

6. Right to Freedom of Thought and Expression:

Right to freedom of thought and expression is also very important for personality development. All person want freedom to express and exchange with others their views and ideas.

7. Right to Freedom of Movement:

Every citizen has the right to move freely throughout the country. Citizens are also given the right to go abroad. However certain areas can be made restricted areas.

8. Freedom of Press:

Press is considered the guardian of the rights of the citizens. Therefore, in democratic countries, citizens are given the right to get their views printed in newspapers and periodicals. This right is essential for spreading education and information among the people.

9. Right to Equality:

In a modern democratic state individual are granted the right to equality. No discrimination is done on the basis of religion, language, caste, sex, colour and the like. Everyone is given equal opportunity to develop.

10. Right to Justice:

To save the weak and the poor, right to get justice is also given. If this right is not given, many other rights also become meaningless. People are given the right to go to court for securing justice.

11. Freedom to Form Associations:

In order to fulfill his social, economic, political and cultural needs, many forms different types of associations and the state recognizes their right to do so. For the protection of his interest individual is free to become a member of any association. But

state does not permit the formation of such associations as are considered harmful to the interest of the state or society.

12. Right to Cultural Freedom:

In secular democratic countries, the citizens are given the right to cultural freedom. They are free to develop their languages, customs, folkways, literatures, and traditions.

13. Right to Contract:

The right to contract enables the citizens to enter into free contracts with others. This is an essential condition of civilized life as without this social, economic and political relations cannot be really established.

ECONOMIC RIGHTS

1. Right to Work:

Right to work is essential for the good living and the fulfillment of the various needs of the person. Every modern state tries to give the right to work to its people.

2. Right to Adequate Wages:

A person has the right not only to work but also the right to be paid adequate wages for his labour. For this purpose, state fixes minimum wages according to the quality and quantity of work. Wage is always regarded as a reward for the work done.

3. Right to Property:

Right to property is as natural to man as family. It means the right to retain the surplus wealth or money and purchase immovable or movable property. Property contributes towards the growth of culture and civilization. Right to property is a natural corollary of right to adequate wages.

4. Right to Rest and Leisure:

After working for some hours and days man needs rest because he is not a machine which can work continuously. Therefore, the state gives the right to rest and leisure which enables the workers to protect their health. For this purpose, state fixes working hours, makes provisions for a break or interval between the working hours, establishes rest houses etc.

5. Right to Economic and Social Security:

In a modern welfare state, citizens are also given the right to economic and social security. State provides security in case of old age, sickness, unemployment etc. Most of the states give old age pensions, unemployment allowances, and benefits of provident fund, financial helps during illnesses or accidents or natural calamities.

6. Right to fix hours of Work:

The modern state also fixes the hours of work per day. No one can be forced to work for more than fixed hours.

POLITICAL RIGHTS

1. Right to Vote:

In a democratic state, every adult citizen is given the right to vote. By the use of this right, citizens elect the government of their choice. This right is given only to the adults i.e. persons above a particular age 18 years or 21 years.

2. Right to get elected:

In a democratic state every citizen is also given the right to get elected to any public office. He can get elected to a legislature, or municipal corporation municipal committee or panchayat and work as its member. Some qualifications are however fixed for seeking election.

3. Right to Hold Public Office:

Citizens also have the right to hold public offices after getting elected as representatives of the people. While fixing qualifications, no discrimination is made and proper care is taken that only competent persons may get elected.

4. Right to Petition:

Citizens have the right to petition and they can send applications individually or collectively to the authorities for the redress of their grievances.

5. Right to Form Political Parties:

In every democratic state; people have the right to form their political parties and to participate in the political process through these.

6. Right to Criticize:

In a democratic state citizen also enjoy the right to criticise the politics of the government. It is through the exercise of this right that the government is made responsible.

7. Right to oppose the Government:

Citizens of a democratic, like India, have the right to oppose the government when it may fail to protect their interests. However, such a resistance has to be peaceful and by constitutional means. All these civil, economic and political rights are granted and guaranteed by the state, in fact by a democratic state, to all its citizens without any discrimination.

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UNIT III

WOMEN'S RIGHTS

- India referred to as Mother country and the Indian traditions, treating Mother as Goddess still prevails. But yet women harassment by the Indian society is on the increase through many ways such as molestation, cruelty, kidnapping, eve-teasing, dowry, dowry deaths, harassments and so on.
- Women have equal rights as that of men. Men and women shall enjoy in practice, equal rights, equal access to and control over productive resources, education, marriage, profession, health, land, shelter, credit, information, knowledge, skills, and technology, residence, politics and nationality, etc. Men and women enjoy equal rights without discrimination.
- According to U.N. report, 1980" Women constitute half of the world population perform two-third of its work hours, received one-tenth of the world's income and own less than one-hundredth of the world's property".
- In the preamble of the charter of U.N., International conventions, and covenants expresses about women as follows:
- Equal rights of men and women in the matters of participation in the work of the United Nations.
- Men and women are equal before law and are entitled without any discrimination to equal protection under law.
- Men and women have the right to equal pay for equal work.
- Women shall be entitled to vote in all elections on equal terms.
- Women shall be eligible to hold public office.

India has given equal status to women under its constitution under Article 14, which provides that, "the State shall not deny to any person equality before law or equal protection of the laws within the territory of India".

India has an elaborate system of laws to protect the rights of women including the Equal Remuneration Act, the Prevention of Immoral Traffic Act, the Sati Act, and the Dowry Prohibition Act.

The various provisions of the above act clearly show that women in India enjoy right to equality and any discrimination against them shall be violation of equality of right and respect of human dignity.

The Constitution of India also provides under Article 15 that, "every female citizen has a right to access to shops, public restaurants, hotels and places of public entertainments". No restriction can be imposed on women citizens with regard to the use of well, tanks, roads and places of public resort maintained wholly or partially by state funds.

Right to Inheritance

- Inheritance is the practice of passing on property, titles, debts, rights and obligations upon the death of an individual. It has long played an important role in human societies.
- Women had earlier very limited rights in property. Prior to the Hindu Succession Act, 1956 she had a limited estate in the property inherited by her husband. Under Section 14 of the Hindu Succession Act any property possessed by a female Hindu whether acquired before or after the commencement of the Act was to be held by her as a full owner and not as a limited owner and all rights of limited ownership of female Hindus became absolute rights.
- Women have got equal rights, like men. Women can also earn, acquire, own, manage and dispose of property at their discretion. Women can acquire property through the following means, which are applicable in the case of men also:

1. Through the own earnings
2. Through purchase
3. Through gift
4. Through will
5. Through inheritance.

- A woman can own the property, possess it, manage it, enjoy its income, and dispose it by sale, transfer or settlement. Over her property she has the exclusive

and absolute rights. Her father, her husband or her brother or her children have no legal right over her property.

- Equality of right in respect of the ownership, acquisition, management, administration, enjoyment and disposition of property, whether free of charge or for a valuable consideration.

Right to Marriage and Found Family

Men and women of marriageable age can marry and found a family. A woman has got as much right to marry as a man has. Women have the following rights regarding their marriage.

1. Right of women of marriageable age to marry and to found a family.
2. Right to choose a spouse freely and to enter into marriage only with their free and full consent.
3. Equality of rights and responsibility of women as to marriage, during marriage and at its dissolution.
4. Equality of rights and responsibilities as parents, in matters relating to their children.
5. Equality of rights and responsibilities with regard to guardianship, ward ship, trusteeship and adoption of children.
6. Right to choose a family name, a profession and an occupation.
7. Rights to decide freely and responsibly on the number and spacing of their children and to have access to the information, education, and means to enable them to exercise their rights.

Right to Divorce and Remarry

- The divorce is the most hated and unpleasant thing in the world. It becomes inevitable in some extreme situations when it is not possible for the husband and wife to live together.
- It is allowed normally when all the efforts for reconciliation have proved abortive and there are no chances left for them to live together amicably. Divorce is an abominable and unfortunate practice, but sometimes it becomes necessary and unavoidable.

- Divorce is a legal dissolution of marriage and is recognized in almost all societies. It is regarded as a necessary corollary to the law of marriage, but the right to divorce among the community and nation differ.
- In the modern world almost, all nations have liberalized their divorce laws, conferring many equitable and humanitarian rights on women. A married woman shall have the right to demand divorce from her husband.
- Women can get divorce from their husbands by mutual consent or by courts of law (The Family Courts Act, 1984).
- A married woman can obtain judicial divorce from her husband on any one or more of the following grounds, namely:

- i) That the whereabouts of the husband have not known for a period of 4 years.
- ii) That the husband has neglected or has failed to provide for her maintenance for a period of 2 years.
- iii) That the husband has married another wife without the consent of the first wife.
- iv) That the husband has failed to perform, without reasonable cause, his marital obligations for a period of 3 years
- v) That the husband has been insane for a period of 2 years or is suffering from leprosy or a virulent veneered disease.
- vi) That the husband treats her with cruelty/assault/force her to lead an immoral life, and
- vii) That the husband has been sentenced to imprisonment for a period of 7 years or upward.

Right to Adoption

Women in India are likely to get equal rights in guardianship and adoption of children. Parliament had passed the Personal Laws (Amendment) Bill, 2010 to amend the Guardians and Wards Act, 1890 and the Hindu Adoptions and Maintenance Act, 1956. According to the Guardians and Wards Act, which applies to Christians, Muslims, Parsis and Jews, if a couple adopts a child, the father is the natural guardian. The Act provides for the mother to be appointed as a guardian along with the father so

that the courts do not appoint anyone else in case the father dies. 4 Unmarried, divorced women and widows are allowed to adopt a child but women separated from their husbands and engaged in lengthy divorce battles cannot adopt a child. A married woman separated from her husband to adopt with the consent of her husband even during the time of divorce proceedings.

Right to Education

- It is obligatory on every male and female to get education, acquire learning and search for knowledge. The woman has got equal right with the men to acquire education and learning.
- Education makes a woman to become a good wife, mother, good human being and a useful citizen.
- The various international conventions and covenants on human rights provide that women shall be provided same conditions for careers and vocational guidance as that of men. They shall be provided same access to studies for the achievement of diplomas in educational establishment.
- Equality shall be provided in pre-school, general, technical, professional and higher education as well as in all types of vocational training. Women shall have access to the same curricula the same examinations, and use equipment of the same quality as to that of men.

Women have the following rights relating to education.

1. Right to education
2. Right to choose the kind of education.
3. Right to access to same curricula, the same examination and same standard of education as to that of men.
4. Right to participate actively in sports and physical education.
5. Equality of right in preschool, general, technical, professional and higher technical education as to that of men.
6. Equal opportunities for access to programs of continuing education, including adult literacy programs.

7. Equal conditions of access to, and study in, educational institutions of all types, including universities and vocational, technical and professional schools.

Right to Employment and Career Advancement

- Earning of livelihood for the family is basically a duty of the man. Man is responsible for providing food, cloth and shelter to his wife and children. However, there may be a situation where the woman has also to work for earning livelihood. Though earning of sustenance for the family is basically the duty of men and women to engage in any employment, business, profession or vocation to earn or contribute in the income of the family in case of need.
- Women have the following rights with regards to employment and career development.

i) Right to work.

ii) Right to free choice of profession/employment/career development

iii) Right to same employment opportunities as that of men.

iv) Right to fair and equal remuneration for equal work as that of men.

v) Right to equal benefits and to equal treatment

vi) Right to obtain all types of training formal or non-formal in order to increase their profession.

vii) Right to promotion, job security and all benefits and conditions of service as that of men.

viii) Right to protection of health and to safety in working conditions.

ix) Right to maternity relief.

x) Right to receive medical and disability benefits.

xi) Right to adequate standard of living for herself and her family including housing on equal terms with men.

xii) Right to social security, particularly in cases of retirement, unemployment, sickness and old age and other inability to work, as well as the right to paid leave.

Rights Relating to Dowry

- Dowry means any property or valuable security given or agreed to be given by one party to the marriage to the other party or either party to a marriage either directly or indirectly.
- Dowry may be given at or before or any time after the marriage in connection with the marriage of the said parties. Taking or giving dowry or abetting to give dowry or abetting to take dowry is offence under the Dowry Prohibition Act 1961.
- As per section 3 of the Act, the person gives or takes dowry shall be punishable with imprisonment for a term which shall not be less than five years, and with fine which shall not be less than fifteen thousand rupees or the amount of the value of such dowry, whichever is more.

Eradication of Dowry:

- i) The laws prohibiting giving and taking of dowry must be strictly enforced by the law enforcing agencies
- ii) The society especially the male members will not demand any dowry in any way
- iii) The society should uphold the rights of women and equal protection should be given to the women member of the society.
- iv) The married women must be honored with all the material rights which they enjoy after marriage.
- v) The Government should take all possible measures to eradicate poverty and illiteracy among the society, which are main reasons for dowry.
- vi) Various women's organization like All India Democratic Women's Association (AIDWA), National Commission for Women (NCW) and Suriya Pengal must fight for the rights of the women and they must raise their voice against giving and taking dowry.
- vii) Women must be given due share in the entire organization and in employment.

Right for Equality

Indian Constitution prohibits discrimination on the basis of sex. Yet, it recognizes that women need special attention. The latter point is brought out by Articles 23 and 42. Article 23 prohibits traffic in human beings.

Among other things, Articles 14, 15, 16 and 39 guarantee equality among the sexes.

- Article 14 lays down equality before the law and equal protection of the law.
- Article 15 prohibits discrimination against any citizen on grounds of religion, race, sex, etc.
- Article 16 guarantees equality of opportunity in matters of public employment. It says that no citizen shall be discriminated against on ground of religion, race, caste, sex, etc.

Right for Safe Working Conditions

Article 38 of the Indian constitution provide for equal pay for equal work for both men and women. According to Factories Act 1948, women have certain safe working conditions. They are:

- No women shall be required or allowed to work in any factory except between the work of 9.00 am and 7.00 pm.
- No women shall be allowed to clean, lubricate or adjust mover or transmission of machinery is in motion or moving parts.
- Every factory must provide sufficient member of separate canteen and urinals for women workers.

FEMALE FETICIDE

- Female feticide is a process of aborting female fetuses after about 18 weeks of gestation or we can say that killing or murdering a female child with in womb of mother.
- Female feticide is a violation of human right; the female children in the wombs are not only denied the right to live but are robbed to their right to born. More than a hundred million women are missing because their parents wanted a son.

There is no question that female feticide is not just unethical but it downright cruel as well.

- Ten years back where to alter the gender composition of children is also the crudest i.e., female infanticide. The method relies on the set of procedure to kill girls within the few days after their birth. At this time there is no awareness about such technology to determine the sex the child before birth. But this practice distresses the women who are widowed or single pregnancy and they also go for suicide. With the increase in practice of female infanticide government imposed strict actions against it.
- Thereby it reduces but with the technology it is converted into the new form, today what we call is female feticide.

ISSUES RELATED WITH INFANTICIDE

- Female infanticide is the intentional killing of infant girls. In addition to the active methods undertaken to eliminate baby girls soon after birth, neglect and discrimination leading to death and sex-selective abortion are also means by which many female children die each year.
- These phenomena are most prevalent in patriarchal societies in which the status of women is low and a preference for sons is built into the cultural ideology.
- Female infanticide cuts across all social and economic boundaries. Thus, the practice involves a wide range of location-specific and culturally-motivated causes.
- In rural and poverty-stricken areas, lack of education, economic resources, and access to healthcare are factors that lead to the murder of infant girls.
- In urban areas, selective abortion is commonly employed by individuals with access to modern medical technology that allows for early detection of sex. Unfortunately, although government programs and human rights organizations strive to put an end to these practices with education, financial incentives, and threat of punishment, female infanticide continues. India and China, two of the

most populous countries today, top the list of nations in which these atrocities are carried out.

STREET CHILDREN

- The issue of street children is considered to be an urban problem. Children can be found in railway stations, near temples and durgas, in markets, under bridges, near bus depots and stops, etc. Hence the definition of street is not in the literal sense, but refers to those children without a stable home or shelter. **There are three major categories of street children:**

➤ Children who live on the street with their families and often work on the street. There may be children from migrated families, or temporarily migrated and are likely to go back to their homes.

➤ Children who live on the street by themselves or in groups and have remote access or contact with their families in the villages. Some children travel to the cities for the day or periods of time to work and then return to their villages.

➤ Children who have no ties to their families such as orphans, refugees and runaways.

SELECTIVE ABORTION

- Sex-selective abortion is the practice of terminating a pregnancy based upon the predicted sex of the infant. The selective abortion of female fetuses is most common in areas where cultural norms value male children over female children, especially in parts of East Asia and South Asia (particularly in countries such as People's Republic of China, India and Pakistan), as well as in the Caucasus, and Western Balkans.
- Sex-selective abortion affects the human sex ratio—the relative number of males to females in a given age group, with China and India, the two most populous countries of the world, having unbalanced gender ratios.
- Studies and reports focusing on sex-selective abortion are predominantly statistical; they assume that birth sex ratio—the overall ratio of boys and girls at birth for a regional population, is an indicator of sex-selective abortion.

PHYSICAL ASSAULT

Physical assault takes place when an individual or a group provokes and attacks a person physically, with or without the use of a weapon, or threatens to hurt that person. Work-related aggression happens through the use of force or threats to a non-consenting victim on the work premises or in the context of the victim's work.

Signs of physical assault

The following are examples of physical assault.

- Provocation: insults, death threats.
- Intimidation: making a fist, pushing, stalking, stealing/throwing objects.
- Brutality: attacks, struggles, fight.
- Punches and injuries: bites, bruises, injuries, dislocations, fractures.
- Assault with a weapon.
- Armed robbery (with a firearm or using force or the threat of force).

Consequences of physical assault in the workplace:

• For the victim

The victim of assault, having lived through a traumatic ordeal, may be affected not only physically (physical scars, chronic pain) but also psychologically (shock, constant fear, emotional instability). Depending on the injuries, the victim could be unable to work for days, even months, be hospitalized and in more severe cases, have to undergo rehabilitation therapy.

• For witnesses inside the organization

Witnesses of physical assault experience a high level of stress. Based upon the degree of the violence itself and the length of the altercation between co-workers, some witnesses could suffer from psychological (insomnia, nervousness, emotional instability, exhaustion) as well as physiological (hypertension, ulcers, eczema) distress.

On the other hand, depending on how much they knew the victim and whether they could have intervened, some witnesses could be prosecuted for failing to assist a person in danger or for criminal conspiracy or incitement.

- **For the organization**

Physical assault against employees highlights an organization's ability to prevent and resolve conflicts among employees and to ensure security. Consequently, the company may suffer important losses in the form of sick leaves, replacements, insurance, and lawsuits as well as in the cost of reinforcing security measures and setting up employee assistance programs.

SEXUAL HARASSMENT

Sexual harassment is unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when:

- Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment, or Submission to or rejection of such conduct by an individual is used as a basis for employment decisions affecting such individual, or Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment. Unwelcome Behavior is the critical word. Unwelcome does not mean "involuntary." A victim may consent or agree to certain conduct and actively participate in it even though it is offensive and objectionable. Therefore, sexual conduct is unwelcome whenever the person subjected to it considers it unwelcome. Whether the person in fact welcomed a request for a date, sex-oriented comment, or joke depends on all the circumstances.

SEXUAL HARASSMENT INCLUDES MANY THINGS...

- Actual or attempted rape or sexual assault.
- Unwanted pressure for sexual favors.
- Unwanted deliberate touching, leaning over, cornering, or pinching.
- Unwanted sexual looks or gestures.
- Unwanted letters, telephone calls, or materials of a sexual nature.
- Unwanted pressure for dates.
- Unwanted sexual teasing, jokes, remarks, or questions.

- Referring to an adult as a girl, hunk, doll, babe, or honey.
- Whistling at someone.
- Cat calls.¹⁰
- Sexual comments.
- Turning work discussions to sexual topics.
- Sexual innuendos or stories.
- Asking about sexual fantasies, preferences, or history.
- Personal questions about social or sexual life.
- Sexual comments about a person's clothing, anatomy, or looks.
- Kissing sounds, howling, and smacking lips.
- Telling lies or spreading rumors about a person's personal sex life.
- Neck massage.
- Touching an employee's clothing, hair, or body.
- Giving personal gifts.
- Hanging around a person.
- Hugging, kissing, patting, or stroking.
- Touching or rubbing oneself sexually around another person.
- Standing close or brushing up against a person.
- Looking a person up and down (elevator eyes).
- Staring at someone.
- Sexually suggestive signals.
- Facial expressions, winking, throwing kisses, or licking lips.
- Making sexual gestures with hands or through body movements.

Examples

VERBAL

- Referring to an adult as a girl, hunk, doll, babe, or honey
- Whistling at someone, cat calls
- Making sexual comments about a person's body
- Making sexual comments or innuendos

- Turning work discussions to sexual topics
- Telling sexual jokes or stories
- Asking about sexual fantasies, preferences, or history
- Asking personal questions about social or sexual life
- Making kissing sounds, howling, and smacking lips
- Making sexual comments about a person's clothing, anatomy, or looks
- Repeatedly asking out a person who is not interested
- Telling lies or spreading rumors about a person's personal sex life

NON-VERBAL

- Looking a person up and down (Elevator eyes)
- Staring at someone
- Blocking a person's path
- Following the person
- Giving personal gifts
- Displaying sexually suggestive visuals
- Making sexual gestures with hands or through body movements
- Making facial expressions such as winking, throwing kisses, or licking ps

PHYSICAL

- Giving a massage around the neck or shoulders
- Touching the person's clothing, hair, or body
- Hugging, kissing, patting, or stroking
- Touching or rubbing oneself sexually around another person
- Standing close or brushing up against another person

DOMESTIC VIOLENCE

Domestic violence is not physical violence alone. Domestic violence is any behavior the purpose of which is to gain power and control over a spouse, partner, girl/boyfriend or intimate family member. Abuse is a learned behavior; it is not caused by anger, mental problems, drugs or alcohol, or other common excuses.

Types of Domestic Violence

When the general public thinks about domestic violence, they usually think in terms of physical assault that results in visible injuries to the victim. This is only one type of abuse. There are several categories of abusive behavior, each of which has its own devastating consequences. Lethality involved with physical abuse may place the victim at higher risk, but the long-term destruction of personhood that accompanies the other forms of abuse is significant and cannot be minimized. Please explore the following sections to learn more about how to identify domestic violence.

Types of Abuse:

- o Control
- o Physical Abuse
- o Sexual Abuse
- o Emotional Abuse & Intimidation
- o Isolation
- o Verbal Abuse: Coercion, Threats, & Blame
- o Using Male Privilege
- o Economic Abuse

Control: Controlling behavior is a way for the batterer to maintain his dominance over the victim. Controlling behavior, the belief that he is justified in the controlling behavior, and the resultant abuse is the core issue in abuse of women. It is often subtle, almost always insidious, and pervasive.

This may include but is not limited to:

- Checking the mileage on the odometer following her use of the car.
- Monitoring phone calls, using caller ID or other number monitoring devices, not allowing her to make or receive phone calls.
- Not allowing her freedom of choice in terms of clothing styles, makeup or hairstyle. This may include forcing her to dress more seductively or more conservatively than she is comfortable.

- Calling or coming home unexpectedly to check up on her. This may initially start as what appears to be a loving gesture, but becomes a sign of jealousy or possessiveness.
- Invading her privacy by not allowing her time and space of her own.
- Forcing or encouraging her dependency by making her believe that she is incapable of surviving or performing simple tasks without the batterer or on her own.
- Using the children to control the mother by using the children as spies, threatening to kill, hurt or kidnap the children, physical and/or sexual abuse of the children, and threats to call Child Protective Services if the mother leaves the relationship.

PHYSICAL ABUSE:

According to the AMEND Workbook for Ending Violent Behavior, physical abuse is any physically aggressive behavior, withholding of physical needs, indirect physically harmful behavior, or threat of physical abuse. This may include but is not limited to:

- Hitting, kicking, biting, slapping, shaking, pushing, pulling, punching, choking, beating, scratching, pinching, pulling hair, stabbing, shooting, drowning, burning, hitting with an object, threatening with a weapon, or threatening to physically assault.
- Withholding of physical needs including interruption of sleep or meals, denying money, food, transportation, or help if sick or injured, locking victim into or out of the house, refusing to give or rationing necessities.
- Abusing, injuring, or threatening to injure others like children, pets, or special property.
- Forcible physical restraint against her will, being trapped in a room or having her exit blocked, being held down.
- The batterer hitting or kicking walls, doors, or other inanimate objects during an argument, throwing things in anger, destruction of property.

- Holding the victim hostage.

SEXUAL ABUSE:

- Sexual abuse is using sex in an exploitative fashion or forcing sex on another person. Having consented to sexual activity in the past does not indicate current consent. Sexual abuse may involve both verbal and physical behavior. This may include, but is not limited to:
- Using force, coercion, guilt, or manipulation or not considering the victim's desire to have sex. This may include making her have sex with others, have unwanted sexual experiences, or be involuntarily involved in prostitution.
- Exploiting a victim who is unable to make an informed decision about involvement in sexual activity because of being asleep, intoxicated, drugged, disabled, too young, too old, or dependent upon or afraid of the perpetrator.
- Laughing or making fun of another's sexuality or body, making offensive statements, insulting, or name-calling in relation to the victim's sexual preferences/behavior.
- Making contact with the victim in any nonconsensual way, including unwanted penetration (oral, anal or vaginal) or touching (stroking, kissing, licking, sucking or using objects) on any part of the victim's body.
- Exhibiting excessive jealousy resulting in false accusations of infidelity and controlling behaviors to limit the victim's contact with the outside world.
- Having affairs with other people and using that information to taunt the victim.
- Withholding sex from the victim as a control mechanism.

EMOTIONAL ABUSE & INTIMIDATION:

- According to the AMEND Workbook for Ending Violent Behavior, emotional abuse is any behavior that exploits another's vulnerability, insecurity, or character. Such behaviors include continuous degradation, intimidation, manipulation, brainwashing, or control of another to the detriment of the individual (AMEND 3).

- This may include but is not limited to: Insulting or criticizing to undermine the victim's self-confidence. This includes public humiliation, as well as actual or threatened rejection.
- Threatening or accusing, either directly or indirectly, with intention to cause emotional or physical harm or loss. For instance, threatening to kill the victim or himself, or both.
- Using reality distorting statements or behaviors that create confusion and insecurity in the victim like saying one thing and doing another, stating untrue facts as truth, and neglecting to follow through on stated intentions. This can include denying the abuse occurred and/or telling the victim she is making up the abuse. It might also include crazy making behaviors like hiding the victim's keys and berating her for losing them.
- Consistently disregarding, ignoring, or neglecting the victim's requests and needs.
- Using actions, statements or gestures that attack the victim's self-esteem and self-worth with the intention to humiliate.
- Telling the victim that she is mentally unstable or incompetent.
- Forcing the victim to take drugs or alcohol.
- Not allowing the victim to practice her religious beliefs, isolating her from the religious community, or using religion as an excuse for abuse.
- Using any form of coercion or manipulation which is disempowering to the victim.

Isolation:

Isolation is a form of abuse often closely connected to controlling behaviors. It is not an isolated behavior, but the outcome of many kinds of abusive behaviors. By keeping her from seeing who she wants to see, doing what she wants to do, setting and meeting goals, and controlling how she thinks and feels, he is isolating her from the resources (personal and public) which may help her to leave the relationship. By keeping the victim socially isolated the batterer is keeping her from contact with the

world which might not reinforce his perceptions and beliefs. Isolation often begins as an expression of his love for her with statements like if you really loved me you would want to spend time with me, not your family. As it progresses, the isolation expands, limiting or excluding her contact with anyone but the batterer. Eventually, she is left totally alone and without the internal and external resources to change her life. Some victims isolate themselves from existing resources and support systems because of the shame of bruises or other injuries, his behavior in public, or his treatment of friends or family. Self-isolation may also develop from fear of public humiliation or from fear of harm to herself or others. The victim may also feel guilty for the abuser's behavior, the condition of the relationship, or a myriad of other reasons, depending on the messages received from the abuser.

Verbal Abuse:

Coercion, Threats, & Blame: Verbal abuse is any abusive language used to denigrate, embarrass or threaten the victim. This may include but is not limited to:

- Threatening to hurt or kill the victim or her children, family, pets, property or reputation.
- Name calling ('ugly', 'bitch', 'whore', or 'stupid')
- Telling victim, she is unattractive or undesirable.
- screaming, rampaging, terrorizing or refusing to talk

Using Male Privilege:

As long as we as a culture accept the principle and privilege of male dominance, men will continue to be abusive. As long as we as a culture accept and tolerate violence against women, men will continue to be abusive.

Four widespread cultural conditions allow and encourage men to abuse women.

These are:

- Objectification of women and the belief that women exist for the 'satisfaction of men's personal, sexual, emotional and physical needs.
- An entitlement to male authority with a right and obligation to control, coerce, and/or punish her independence.

- That the use of physical force is acceptable, appropriate, and effective.
- Societal support for his dominance, controlling and assaultive behavior. By failing to intervene aggressively against the abuse, the culture condones the violence.

Economic Abuse:

Financial abuse is a way to control the victim through manipulation of economic resources.

This may include, but is not limited to:

- Controlling the family income and either not allowing the victim access to money or rigidly limiting her access to family funds. This may also include keeping financial secrets or hidden accounts, putting the victim on an allowance or allowing her no say in how money is spent, or making her turn her paycheck over to him.
- Causing the victim to lose a job or preventing her from taking a job. He can make her lose her job by making her late for work, refusing to provide transportation to work, or by calling/harassing/calling her at work.
- Spending money for necessities (food, rent, utilities) on nonessential items (drugs, alcohol, stereo equipment, hobbies.)

CHILDREN'S RIGHTS

The children of our country are the most underprivileged in our society. The poverty in our country is of such great magnitude that children from underprivileged section of the society are forced to work resulting in child labour. According to National Sample Survey, the number of child workers have increased manifold in the society. Further the condition in which a child is forced to work is no better than that of slavery.

A right is as an agreement or contract established between the persons who hold a right (often referred to as the "rights-holders") and the persons or institutions which then have obligations and responsibilities in relation to the realization of that right (often referred to as the "duty-bearers".) Child rights are specialized human rights

that apply to all human beings below the age of 18. Universally child rights are defined by the United Nations and United Nations Convention on the Rights of the Child (UNCRC).

According to the UNCRC Child Rights are minimum entitlements and freedoms that should be afforded to all persons below the age of 18 regardless of race, colour, gender, language, religion, opinions, origins, wealth, birth status or ability and therefore apply to all people everywhere. The UN finds these rights interdependent and indivisible, meaning that a right cannot be fulfilled at the expense of another right. The purpose of the UNCRC is to outline the basic human rights that should be afforded to children. There are four broad classifications of these rights. These **four categories** cover all civil, political, social, economic and cultural rights of every child.

Right to Survival: A child's right to survival begins before a child is born. According to Government of India, a child life begins after twenty weeks of conception. Hence the right to survival is inclusive of the child rights to be born, right to minimum standards of food, shelter and clothing, and the right to live with dignity.

Right to Protection: A child has the right to be protected from neglect, exploitation and abuse at home, and elsewhere.

Right to Participation: A child has a right to participate in any decision making that involves him/her directly or indirectly. There are varying degrees of participation as per the age and maturity of the child.

Right to Development: Children have the right to all forms of development: Emotional, Mental and Physical. Emotional development is fulfilled by proper care and love of a support system, mental development through education and learning and physical development through recreation, play and nutrition.

The preamble to the Declaration on the Rights of the Child provides the following right of a child:

- 1) Right to life
- 2) Right to acquire nationality
- 3) Right to freedom of thought

- 4) Right to privacy
- 5) Right to health care and protection
- 6) Right to work
- 7) Right to freedom from torture and ill treatment
- 8) Right to education
- 9) Right to family environment
- 10) Right to benefit from social security
- 11) Right to enjoyment
- 12) Right against exploitation
- 13) Right against exploitation of child labour

Right on Protection and Care

The government of India has enacted the following thirteen Acts to provide legal protection to all children.

1. The Child Marriage Restraints Act, 1929.
2. The Children Act, 1933.
3. The Employment of Children Act, 1938.
4. The Minimum Wages Act, 1948.
5. The Factories Act, 1951.
6. The Plantation Labour Act, 1951.
7. The Indian Factories Act and Mines Act, 1952.
8. The Merchant Shipping Act, 1958.
9. The Apprentices Act, 1961.
10. The Atomic Energy Act, 1962.
11. The Beedi and Cigar Workers (Condition of Employment) Act, 1966.
12. The Shops and Establishments Acts, 1969 (State wise)
13. The Child Labour (Prohibition and Regulations) Act, 1986.

Governments have a responsibility to take all available measures to make sure children's rights are respected, protected and fulfilled.

- Children have the right to be protected from being hurt and mistreated, physically or mentally.
- Children who cannot be looked after by their own family have a right to special care and must be looked after properly, by people who respect their ethnic group, religion, culture and language.
- The government should protect children from work that is dangerous or might harm their health or their education.
- Governments should use all means possible to protect children from the use of harmful drugs and from being used in the drug trade.
- Governments should protect children from all forms of sexual exploitation and abuse.
- The government should take all measures possible to make sure that children are not abducted, sold or trafficked.
- Children who have been neglected, abused or exploited should receive special help to physically and psychologically recover and reintegrate into society.

Role of UN on convention of children rights

The full list of rights for children and young people under the age of 18 is set out in the United Nations Convention on the Rights of the Child, the most accepted standard on children's rights in the world. Ireland committed to promote children's rights when it signed up to the Convention in 1992.

Children's rights include the right to health, education, family life, play and recreation, an adequate standard of living and to be protected from abuse and harm. Children's rights cover their developmental and age-appropriate needs that change over time as a child grows up.

There are four general principles that underpin all children's rights:

- **Non-discrimination** means that all children have the same right to develop their potential in all situations and at all times. For example, every child should have equal

access to education regardless of the child's gender, race, ethnicity, nationality, religion, disability, parentage, sexual orientation or other status

- **The best interests of the child** must be "a primary consideration" in all actions and decisions concerning a child, and must be used to resolve conflicts between different rights. For example, when making national budgetary decisions affecting children, Government must consider how cuts will impact on the best interests of the child
- **The right to survival and development** underscores the vital importance of ensuring access to basic services and to equality of opportunity for children to achieve their full development. For example, a child with a disability should have effective access to education and health care to achieve their full potential
- **The views of the child** mean that the voice of the child must be heard and respected in all matters concerning his or her rights. For example, those in power should consult with children before making decisions that will affect them.

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UNIT IV

BONDED LABOUR

Bonded labour is a form of debt slavery that is created when an individual begins to work for another person who holds a debt from that worker. It is also known as debt slavery. Once a bonded labor situation has been created, some individuals find it impossible to ever break out of it. The purpose of bonded labor for the individual holding the debt is to get a cheap source of labour. The slaves underwent frightful abuses and cruelties and as such they lost their human dignity. They were either paid no wages or very low wages. Liberty, richness and peace are not known to a slave.

ERADICATION OF BONDED LABOUR

Efforts were taken to eliminate the bonded labour system in India since Independence various Acts were passed to eradicate / remove bonded labour system in India.

1. Steps should be taken to identify the bonded labourers in various parts of the country and initiate legal action against the culprits who kept the innocents in bondage.
2. The role of NGOs is very essential in identifying the bonded labourers, in various parts of India.
3. Proper and necessary amendments must be introduced in the existing Bonded Labour Abolition Act.
4. Bonded labourers must be made to realize their rights for which education is the only means.
5. Various Acts passed by the Government to abolish bonded labour since Independence.

They are:

- o Mines Act, 1952.
- o Contract Labour Abolition Act, 1970.
- o Contract Labour (Regulation and Abolition) Act, 1970.
- o Bonded Labour system Abolition Act, 1976.

- o Equal Remuneration Act, 1976.
- o The Inter-State Migrant Workmen (Regulation of Employment and condition of Services) Act, 1979.
- o Child labour prohibition Act, 1981.

CHILD LABOUR

Child labour is the practices of having children engage in economic activity, on part or full-time basis. The practice deprives children of their childhood, and is harmful to their physical and mental development. Poverty, lack of good schools and growth of informal economy are considered as the important causes of child labour in India. India has a federal form of government, and child labour is a matter on which both the central government and country governments can legislate, and have.

The major national legislative developments include the following:

- ❖ The Factories Act of 1948: The Act prohibits the employment of children below the age of 14 years in any factory. The law also placed rules on whom, when and how long can pre-adults aged 15–18 years be employed in any factory.
- ❖ The Mines Act of 1952: The Act prohibits the employment of children below 18 years of age in a mine.
- ❖ The Child Labour (Prohibition and Regulation) Act of 1986: The Act prohibits the employment of children below the age of 14 years in hazardous occupations identified in a list by the law. The list was expanded in 2006, and again in 2008.
- ❖ The Juvenile Justice (Care and Protection) of Children Act of 2000: This law made it a crime, punishable with a prison term, for anyone to procure or employ a child in any hazardous employment or in bondage.
- ❖ The Right of Children to Free and Compulsory Education Act of 2009: The law mandates free and compulsory education to all children aged 6 to 14 years. This legislation also mandated that 25 percent of seats in every private school must be allocated for children from disadvantaged groups and physically challenged children.

ERADICATION OF CHILD LABOUR

Child labour is one of the most pressing social problems which the international community has been facing. Child labour can be eradicated by giving the rights to the children, which are entitled to children under various international laws.

- 1) Making education compulsory and free to the children up to the age to 15
- 2) Stringent laws against the employment of children should be enforced.
- 3) Parents should be made to realize the mistakes committed from their side in sending the children in their tender age to work.
- 4) Film industry could play a laudable role in eradicating child labour by producing documentary films depicting the consequences of child labour.
- 5) Concerned governments should take steps to emphasize more on universalization of primary health and education. Primary education is the only long-term solution to the problem of child labour. Total literacy campaign should be identified and transit schools are a must for child labours.
- 6) Non-government organizations (NGO) should contribute their best to protect children and provide social security and social justice.
- 7) Individual's role in this regard is quite warranted as it is quite reliable and encouraging in solving the problem of child labour.
- 8) Every school should have the right philosophy of education. Minimum and standard norms should be established. The curriculum should aim at the physical, social, economic and cognitive development of children.
- 9) Children must be given freedom to express their grievances in the right forum. When the children are given ample social security, child labour can be avoided.

CONTRACT LABOUR: -

Contract Labour is one of the acute forms of unorganized labour. Under the system of contract labour workers may be employed through contractor on the contract basis. Workmen shall be deemed to be employed as “contract labour” or in connection with the work of an establishment when he is hired in or in connection with such work by or through a contractor, with or without the knowledge of the principal employer.

The contract worker is a daily wager or the daily wages are accumulated and given at the end of the month. The industries justify contract labour on the grounds that the requirement is temporary or seasonal. Nonetheless, there are ready instances of contract labour being deployed for tasks as security, sweeping and cleaning, though it is difficult to comprehend how these tasks are temporary and do not justify full time regular employees.

Contract Labour in India: -

- The system of employing contract labour is prevalent in most industries in different occupations including skilled and semi-skilled jobs.
- It is also prevalent in agricultural and allied operations and to some extent in the services sector.
- A workman is deemed to be employed as Contract Labour when he is hired in connection with the work of an establishment by or through a contractor. Contract workmen are indirect employees; persons who are hired, supervised and remunerated by a contractor who, in turn, is compensated by the establishment.
- Contract labour has to be employed for work which is specific and for definite duration.
- Inferior labour status, casual nature of employment, lack of job security and poor economic conditions are the major characteristics of contract labour. While economic Factors like cost effectiveness may justify system of contract labour, considerations of social justice call for its abolition or regulation.
- The condition of contract labour in India was studied by various Commissions, Committees, and also Labour Bureau, Ministry of Labour, before independence and after independence.

Status of Contract Labourers :-

- The practice of employing labour through contractors and other agencies, thus, avoiding the direct nexus between the employers and their workmen, was very common. Thus, entire factories were farmed out to contractors requiring them to

produce the goods in such factories through machinery owned by the employers, and thereafter, the goods were marked under the employer's brand name.

- This ensured that the workmen were paid much lower wages than they would be entitled to under direct employment. This system led to whole-scale exploitation of labour, and a series of demands were made before tribunals for the abolition of contract labour system.
- The tribunals entertained the claims, and in many cases, granted the demands through their awards.
- In case of Standard Vacuum Refining Co. of India Ltd. v. Workmen, a leading case on the subject, the Supreme Court upheld the right of workmen to seek abolition of contract labour on behalf of the contractors' workmen, and enumerated some of the circumstances in which such abolition can be directed.
- There was considerable agitation by the workmen and their unions for the abolition of contract labour, especially in certain cases where it was absolutely necessary to regulate the terms and conditions of service under which such labour could be employed.
- Thus, the Contract Labour (Regulation & Abolition) Act 1970, was passed by the Parliament and amended into force on September 1970.

The Contract Labour (Regulation & Abolition) Act 1970: -

- In India, contract labourers are protected by the Contract Labour Regulation and Abolition Act, 1970. A contract labourer is defined in the Act as one who is hired in connection with the work of an establishment by a principal employer through a contractor.
- While a contractor is the supplier of contract labour for the organization, a principal employer is the person responsible for the control of the establishment. This act applies to any establishment in which 20 or more workmen are employed on a contract basis on any day of the last one year and also to all contractors who employ or have employed 20 or more workmen on any day of the preceding twelve months.

- Every principal employer to whom this act applies should register his establishment in the prescribed manner for employing contract labour. Unlike the industry sector, generally, there is no provision for remaining unregistered.
- If the Government at any point of time is dissatisfied with the practices followed, it can revoke the registration of an establishment.
- Contract workers need to be paid as per the minimum wage act. For the health and welfare of contract labourers certain provisions have been made mandatory by the Contract Labour Act such as safe drinking water, canteen facilities, first aid facilities etc. Social security covers in terms of provident fund benefits and medical facilities need to be also given to the contract employees. It is the primary responsibility of the contractors to provide all facilities to the workers as delineated in the Act. However, the principal employer should ensure the presence of his authorized representative at the place and time of disbursement of wages by the contractor to the workmen and it is the duty of the contractor to ensure the disbursement of wages in his/her presence. However, if the contractor fails to pay wages or provide other facilities, the responsibility falls on the principal employer.
- Field officers of labour department are supposed to conduct regular inspections to detect violations of the provisions of the Act. Apart from the regulatory measures provided under the Act for the benefit of the contract labour, a government can prohibit employment of contract labour in any establishment in any process operation or other work.
- Such restrictions are often decided on the basis of whether the work is perennial in nature or the work is incidental for an establishment. In such cases it is also examined whether the work is being done ordinarily through regular workmen in that establishment or a similar establishment. Though the Act lays rules as to how the contractual employment should be maintained and there are government officials for inspection to detect violations of the norms, because of the presence

of two separate management systems, viz., the contractor and the principal employer, employer-employee relationship often becomes blurred.

- One of the important sources of controversy is whether contract labour can be used in the core activities of an establishment together with the regular employees.
- A set of perennial or core activities is defined in terms of what a company had declared as its main activities at the time of registration under the Factories Act of 1948. Several litigations arose because of the use of contract labour in the so called “core activity” and number notifications were issued prohibiting the companies to employ contract labour for some specified work.

Regulation of Contract Labour:

For regulation of contract labour an appropriate government by an order notified in the Official Gazette may appoint persons being Gazetted officers of Government, as it thinks fit to be licensing officers for the purposes of this Act that is for the purpose of the regulation of contract labour. The appropriate government also defines limit, within which a licensing officer shall exercise the powers conferred on licensing officers by or under the Act. Further with effect from such date as the appropriate Government may, by notification in the Official Gazette, appoint, no contractor to whom this Act applies, shall undertake or execute any work though contract labour except under and in accordance with a license issued in that behalf by the licensing officer. The license given to the contractors includes in particular, conditions as to hours of work, fixation of wages and other essential amenities in respect of contract labour as the appropriate Government may deem fit to impose in accordance with the rules, if any, made under Section 35 and shall be issued on payment of such fees and on deposit of such sum, if any, as security for the due performance of the conditions as may be prescribed. Section 16-21 deals with Welfare and Health of Contract Labour. The appropriate Government where in the contract labour is numbering one hundred or more is ordinarily employed by a contractor, one or more canteens shall be provided and maintained by the contractor for the use of

such contract labour. Section 18 of the Act speaks of facilities like supply of drinking water, conveniences of latrines urinals and washing facilities. First-aid facilities shall be provided and maintained by the contractor so as to be readily accessible during all working hours a first-aid box equipped with the prescribed contents at every place where contract labour is employed by him. If any amenities mentioned in Section 16, 17, 18 and 19 for the benefit of contract labour employed in an establishment is not provided by the contractor within the time prescribed therefore, such amenity shall be provided by the principal employer within such time as may be prescribed. All the expenses incurred by the principal employer in providing the amenity may be recovered by the principal employer from the contractor either by deduction from any amount payable to the contractor under any contract or as a debt payable by the contractor. The governments' failure to perform its obligation amounts to a violation of Article 21, and the workers can enforce their right by a writ petition under Article 32. Section 21 has nothing to do with the wage rates. The object and purpose of the said section is to ensure that wages payable in law by a contractor to his workmen are paid. If the contractor fails to pay his wages legally payable by him, then under this section, the principal employer is under an obligation to pay the wages and get them reimbursed from the contractor.

MIGRANT LABOUR

Seasonal migration for work is a pervasive reality in rural India. An overwhelming 120 million people or more are estimated to migrate from rural areas to urban labour markets, industries and farms. Migration has become essential for people from regions that face frequent shortages of rainfall or suffer floods, or where population densities are high in relation to land. Areas facing unresolved social or political conflicts also become prone to high out migration. Poverty, lack of local options and the availability of work become the trigger and the pull for rural migration respectively. Migrants form the largest part of India's vast unorganized work sector. Their entry into the labour markets is marked with several endemic disadvantages. Devoid of critical skills, information and bargaining power, migrant workers often get

caught in exploitative labour arrangements that forces them to work in low-end, low-value, hazardous work. Lack of identity and legal protection highlights this problem. Despite the vast numbers of migrant workers, the policies of the Indian state have largely failed in providing any form of legal or social protection to this vulnerable group. The urban labour markets treat them with opportunistic indifference extracting hard labour but denying basic entitlements such as decent shelter, fair priced food, subsidized healthcare facilities or training and education. There is a legislation known as Inter-State Migrant Workers Act, 1979 which aims to safeguard migrants. However, it is obsolete and is hardly enforced anywhere. A serious constraint in framing an effective policy is the lack of credible data on incidence of seasonal migration. Census and NSS that have a significant impact on policy making are unable to capture seasonal and circular migration. Migrants may also be missed out in BPL Surveys. Above all, they are unable to participate in the formal electoral system and are denied a fundamental citizenship right - their right to vote.

CAUSES OF MIGRATION

- Migration in India is mostly influenced by social structures and patterns of development.
- The development policies by all the governments since Independence have accelerated the process of migration. Uneven development is the main cause of migration.
- Added to it, are the disparities, inter regional and amongst different socio-economic classes.
- The landless poor who mostly belong to lower castes, indigenous communities and economically backward regions constitute the major portion of migrants.
- In the very large tribal regions of India intrusion of outsiders, settlements by the outsiders displacing the local tribal people and deforestation also played a major role in migration.

CONDITIONS OF MIGRANT LABOUR

- In terms of employment, construction is the largest employment sector in India after agriculture. Most of the employees in construction are migrants.
- The working hours are from sunrise to sunset. The working day for women often stretches from 14 to 16 hours, combining house work and work on site where women are paid Rs. 60-70 a day while men are paid Rs.100-175.
- Masons earn up to Rs.175-250 a day. Work places are unsafe. Workers have no social security, compensation for injuries, access to drinking water and health care. India has the world's highest accident rate among construction workers.

LEGAL PROVISIONS

- The Government of India made an enactment in 1979 of the “Inter-state Migrant Workmen (Regulation of Employment and Conditions of Service) Act 1979”. Though the act covers only interstate migrants, it lays down that contractors must pay timely wages equal or higher than the minimum wage, provide suitable residential accommodation, prescribed medical facilities, protective clothing, notify accidents and casualties to specified authorities and kin.
- The Act provides for the right to raise industrial disputes in the provincial jurisdiction where they work or in their home province.
- The act sets penalties including imprisonment for non-compliance.
- At the same time the act provides an escape route to principal employers if they can show that transgressions were committed without their knowledge. Needless to say, the Act exists only on paper and not in reality.
- The record of prosecutions or dispute settlement is almost nil. The migrant labourers face additional problems and constraints as they are both labourer and migrants.
- Hence, there is no improvement in the working and living conditions for migrant workers. There are no structures to adequately address the basic issues concerning migrant labour relations, leave aside, addressing the whole range of labour relations.
- One noteworthy enactment to address seasonal migration is the National Rural Employment Guarantee Act (NREGA), which guarantees 100 days of employment in a

year. The rate of daily wages is, as per the minimum wage applicable to that territory. It is implemented successfully only in a very few places which is a miniscule response. In most cases the funds are channeled to vested interests.

REFUGEES RIGHTS

- Refugees are victims of gross human rights violations. They are a distinct group of individuals without the protection of the national State. Refugees are "de jure or de facto" Stateless persons.
- Refugees are referred to those persons who leave their States in which they have permanent residents to escape persecution or military action.
- Refugee may be defined as a person or persons who have left their homeland or place of residence due to unavoidable and oppressive circumstances and are not prepared now to go back to their homeland or original place of residence

RIGHTS, OBLIGATIONS AND DUTIES OF THE REFUGEES

Rights and obligations of the refugees have been conferred in the Covenant on the Status of Refugees, 1951.

1. Personal status of Refugees: The personal status of a refugee shall be governed by the law of the country of his domicile or, if he has no domicile, by the law of the country of his residence. Rights relating to personal status of refugee and his\ her dependent are governed by the law of the country of his residence.

2. Civil Rights: The Contracting States (country in which the refugee resides now) shall provide minimum rights to refugees, such as right to work, right to education and social security, freedom of religion and access to courts without discrimination on the basis of race, religion or country of origin.

3. Treatment of Refugees: Refugees are required to be treated by the State parties as their own nationals with respect to elementary education, public relief and assistance, labour legislations and social security.

4. Place of Residence: Each contracting State shall accord to refugees the right to choose their place of residence and to move freely within its territory subject to any

regulations applicable to aliens. The Contracting States shall not impose upon refugees' duties, charges or taxes of any description whatsoever, other or higher than those which are or may be levied on their nationals in similar situation.

5. Illegal entry of Refugees: The Contracting States shall not impose penalties on those refugees who have illegally entered into their territories without authorization. The contracting States also shall allow such refugees a reasonable period and all the necessary facilities to obtain permission into another country.

6. Expulsion of Refugees: The Contracting States shall not expel a refugee lawfully in their territory on grounds of national security or public order. The expulsion of such a refugee shall be only in pursuance of a decision reached in accordance with due process of law. The Contracting Status shall allow such a refugee a reasonable period within which to seek legal admission into another country.

7. Travel Documents: The Contracting States shall issue travel documents to those refugees staying lawfully in their territory for the purpose of travel outside their territory unless compelling reasons of national security or public order otherwise require.

8. General Obligations: Every refugee has duties to the country in which he is residing. It is expected from him that he will conduct or behave in accordance with the laws and regulations of the residing country.

9. Access to Courts: A refugee shall have free access to the courts of law on the territory of the residing country. Refugee shall enjoy in the Contracting States in which he is residing, the same treatment as a national in the matters pertaining to access to the courts, including legal assistance.

10. Prohibition of Expulsion or Return: No Contracting States shall expel or return (refoulment) a refugee in any manner whatsoever to the frontiers of territories where his life or freedom would be threatened on account of his race, religion, nationality, membership of a particular social group or political opinion.

INDIA AND REFUGEES

India has been kind and generous to refugees. India had neither signed the UN Conventions relating to refugees nor enacted a common law to deal with refugees at the national level. At present about 5,00,000 refugees are in India, fleeing from countries like Tibet, Bangladesh, Sri Lanka, and Afghanistan. The Indian Constitution provides that some of the fundamental rights guaranteed under part III of the Constitution shall be available to "all persons" and consequently, they are available to refugees as well. Thus, the following rights are available to refugees too.

1. Right to equal protection of law (Article 14)
2. Right to protection in respect of conviction for offences (Article 20)
3. Right to life and Liberty (Article 21)
4. Right to protection against arbitrary arrest and detention (Article 22)

DOMESTIC WOMEN WORKERS

According to the International Labour Office (ILO), "tens of millions" of domestic workers provide essential services that enable others to work outside their homes. Thus, domestic workers help keep labour markets and economies working around the globe. Most, though not all, domestic workers are women.

The vast majority are from the poorer sections of society (ILO 2007). Domestic workers work in the homes of others for pay, providing a range of services: they sweep and clean; wash clothes and dishes; shop and cook; care for children, the elderly, and the disabled; they provide gardening, driving, and security services. Some live on the premises of their employer. Others work part time, often for multiple employers. Women are concentrated in cleaning and care services, while men tend to have the better paying jobs as gardeners, drivers, or security guards.

GENDER EQUITY

The concept of gender equity refers to "fairness of treatment for women and men, according to their respective needs. This may include equal treatment or treatment that is different but which is considered equivalent in terms of rights, benefits, obligations and opportunities" (International Labour Office [ILO], 2000). It is

distinct and different from the concept of gender equality, which is the effective equality between men and women that entails the concept that all human beings, both men and women, are free to develop their personal abilities and make choices without the limitations set by stereotypical views, rigid gender roles, and prejudices. Gender equality means that the different behavior, aspirations, and needs of women and men are considered, valued, and favored equally.

Gender Equity is the process of allocating resources, programs, and decision making fairly to both males and females without any discrimination on the basis of sex...and addressing any imbalances in the benefits available to males and females. This requires ensuring that everyone has access to a full range of opportunities to achieve the social, psychological and physical benefits that come from participating and leading in sport and physical activity. It does not necessarily mean making the same programs and facilities available to both males and females. Gender equity requires that girls and women be provided with a full range of activity and program choices that meet their needs, interests and experiences. Therefore, some activities may be the same as those offered to boys and men, some may be altered, and some may be altogether different.

For example, this requires service providers to assess:

- Hiring and recruitment practices to ensure women have leadership roles, and involved in decision-making, and are available as role models for other girls and women;
- Resource allocation to determine how budgets are allocated across programs; Facility bookings to ensure that both females and males have access to prime time slots and prime facilities; Participation rates to evaluate current programs and services to identify potential barriers, and to determine whether co-ed programs are truly co-ed; Activity programming – to assess the types of activities offered for males and females; and Promotional materials to ensure girls and women are not being excluded or stereotyped in pictures or language.

Equality vs. Equity

Equality focuses on creating the same starting line for everyone. Equity has the goal of providing everyone with the full range of opportunities and benefits the same finish line.

Benefits of Gender Equity Organizations have much to gain by committing themselves to achieving gender equity:

- Attracting more girls and women to sport and physical activity enhances the revenue base and increases the market segment to which the sport appeals.
- Fully representing the population base and tapping the resources of every member result in a larger, stronger and more effective organization.
- Skilled women provide the organization with an important talent pool of administrators, coaches and officials.
- Changing the image of women in sport attracts public interest and private investment. In turn, more members are attracted to the organization.
- Taking the lead in promoting girls and women brings prestige and support to the organization.
- Working together, women and men can learn to build equal partnerships.
- Providing opportunities for mothers and daughters to get involved can enhance both the chosen sport or activity, and family relationships.
- Sport and physical activity can provide opportunities for girls to understand and respect their bodies which in turn help them to deal with health issues such as eating disorders and smoking.
- By fulfilling their legal responsibility to treat fairly everyone involved in the organization and making a commitment to gender equity, organizations avoid a negative public image as well as the time and expense of dealing with unnecessary lawsuits.

UNORGANISED LABOUR FORCE IN INDIA

- The Indian economy is characterized by the existence of a vast majority of informal or unorganized labour employment.
- Most of the workers employed in unorganized sector rather than organized sector. Out of these workers in the unorganized sector, most of the workers employed in agricultural sector, and remaining in in construction work, manufacturing and service sector.
- The Ministry of Labour, Government of India, has categorized the unorganized labour force under four groups in terms of Occupation, nature of employment, especially distressed categories and service categories.

1. Occupation

Small and marginal farmers, landless agricultural labourers, share croppers, fishermen, those engaged in animal husbandry, beedi rolling, labelling and packing, building and construction workers, leather workers, weavers, artisans, salt workers, workers in brick kilns and stone quarries, workers in saw mills, oil mills, etc. come under this category.

2. Nature of Employment

Attached agricultural labourers, bonded labourers, migrant workers, contract and casual labourers come under this category.

3. Specially Distressed Category

Toddy tappers, scavengers, carriers of head loads, drivers of animal driven vehicles, loaders and unloaders come under this category.

4. Service Category

Midwives, Domestic workers, Fishermen and women, Barbers, Vegetable and fruit vendors, Newspaper vendors etc. belong to this category. In addition to these four categories, there exists a large section of unorganized labour force such as cobblers, Hamals, Handicraft artisans, Handloom weavers, Lady tailors, physically handicapped self-employed persons, Rikshaw pullers, Auto drivers, Sericulture workers, Carpenters, Tannery workers, Power loom workers and Urban poor.

Predominance of informal employment has been one of the central features of the labour market scenario in India. While the sector contributes around half of the GDP of the country, its dominance in the employment front is such that more than 90% of the total workforce has been engaged in the informal economy.

Major characteristics of the unorganized workers

- The unorganized labour is overwhelming in terms of its number range and therefore they are omnipresent throughout India.
- As the unorganized sector suffers from cycles of excessive seasonality of employment, majority of the unorganized workers does not have stable durable avenues of employment. Even those who appear to be visibly employed are not gainfully and substantially employed, indicating the existence of disguised unemployment.
- The workplace is scattered and fragmented.
- There is no formal employer – employee relationship
- In rural areas, the unorganized labour force is highly stratified on caste and community considerations. In urban areas while such considerations are much less, it cannot be said that it is altogether absent as the bulk of the unorganized workers in urban areas are basically migrant workers from rural areas.
- Workers in the unorganized sector are usually subject to indebtedness and bondage as their meager income cannot meet with their livelihood needs.
- The unorganized workers are subject to exploitation significantly by the rest of the society. They receive poor working conditions especially wages much below that in the formal sector, even for closely comparable jobs, i.e., where labour productivity is no different. The work status is of inferior quality of work and inferior terms of employment, both remuneration and employment.
- Primitive production technologies and feudal production relations are rampant in the unorganized sector, and they do not permit or encourage the workmen to imbibe and assimilate higher technologies and better production relations. Large scale ignorance

and illiteracy and limited exposure to the outside world are also responsible for such poor absorption.

- The unorganized workers do not receive sufficient attention from the trade unions.
- Inadequate and ineffective labour laws and standards relating to the unorganized sector.

Social security measures

- It is rightly true that when independent India's constitution was drafted, social security was specially included in List III to Schedule VII of the constitution and it was made as the concurrent responsibility of the central and state governments.
- A number of directive principles of state policy relating to aspects of social security were incorporated in the Indian constitution. The initiatives in the form of Acts such as the Workmen's Compensation Act (1923), the Industrial Disputes Act (1947), the Employees State Insurance Act (1948), the Minimum Wages Act (1948), the Coal Mines Provident Funds and Miscellaneous Provisions Act (1948), The Employees Provident Fund and Miscellaneous Provisions Act (1952), the Maternity Benefit Act (1961), the Seamen's Provident Fund Act (1966), the Contract Labour Act (1970),
- The Payment of Gratuity Act (1972), the Building and Construction Workers Act (1996) etc. reveal the attention given to the organized workers to attain different kinds of social security and welfare benefits. Though it has been argued that the above Acts are directly and indirectly applicable to the workers in the unorganized sector also, their contribution is very negligible to the unorganized workers.
- In spite of the fact that not much has been done in providing social security cover to the rural poor and the unorganized labour force, the country has made some beginning in that direction. Both the central and state governments have formulated certain specific schemes to support unorganized workers which fail

in meeting with the real needs and requirements of the unorganized sector labour force.

- In fact, a comprehensive Act, catering to the security needs of the unorganized sector such as Food, Nutrition, Health, Housing, Employment, Income, Life and accident, and old age remains a dream in India. Still the cries of the unorganized sector go unattended with the governments laying red carpets for the corporates and so-called investors at the expense and sacrifice of the working class.

Trade Unions:

Trade unions are associations of workers formed to represent their interests and improve their pay and working conditions.

Types:

There are four main types of trade unions.

i. Craft unions:

These represent workers with particular skills e.g. plumbers and weavers. These workers may be employed in a number of industries.

ii. General unions:

These unions include workers with a range of skills and from a range of industries.

iii. Industrial unions:

These seek to represent all the workers in a particular industry, for instance, those in the rail industry.

iv. White collar unions:

These unions represent particular professions, including pilots and teachers. Unions in a country, often belong to a national union organization. For example, in India, a number of unions belong to the All-India Trade Union Congress (AITUC). This is the oldest and one of the largest trade union federations in the country. A number of them also belong to international trade union organizations such as the International Confederation of Free Trade Unions, which has more than 230 affiliated organizations in 150 countries.

Role of Unions:

Unions carry out a number of functions. They negotiate on behalf of their members on pay scales, working hours and working conditions. These areas can include basic pay, overtime payments, holidays, health safety, promotion prospects, maternity and paternity rights and job security.

Depending on the circumstances, unions may try to protect or improve workers' rights. They also provide information on a range of issues for their members, for instance on pensions. They help with education and training schemes and may also participate in measures designed to increase demand for the product produced and hence for labour.

Some also provide a range of benefits to their members including strike pay, sickness pay and unemployment pay. In addition, many get involved in pressurizing their governments to adopt a legislation, which will benefit their members or workers in general, such as fixing a national minimum wage.

Collective Bargaining:

An individual worker may not have the skill, time or willingness to negotiate with her or his employer. A worker is also likely to have limited bargaining power. If she or he presses for a wage rise or an improvement in working conditions, the employer may be able to dismiss her or him and take on someone as a replacement. Unions enable workers to press their claims through collective bargaining. This process involves negotiations between union officials, representing a group of workers, and representatives of employers.

The Basis of Wage Claims:

There are a number of arguments, a union can put forward while asking for a wage rise. One is that the workers deserve to be paid more because they have been working harder and have increased productivity. Another argument is that an industry whose profits have risen can afford to pay higher wages to its workers.

REDRESSAL MECHANISMS AT THE NATIONAL AND STATE LEVELS

Understanding the rights of people in a democracy is not enough. There is also a need to understand the implementation of these rights. Legal provisions merely do not provide the atmosphere and the eligible conditions to enjoy citizenship in a democracy. There have been several philosophies that stated the need for a sovereign to ensure good governance. Man by nature, is selfish and it is rare that he would sacrifice his goals of achieving the maximum from a free society. Hence the need to protect the vulnerable becomes an utmost necessity in the present modern world. Our Constitution by article 32 and Article 226 has recognized every individual's rights to seek redressal from the court if his/her rights are violated. These are termed as the Right to Constitutional Remedies. The judiciary, especially the Supreme Court has been empowered to accept/entertain writ petition from person or persons whose rights are violated. These constitutions make provisions for such institutions with the details of their establishment, tenure, appointment and powers clearly specified to avoid disputes. The appointment of such redressal mechanisms is done at all federal levels to ensure smooth and democratic functioning.

UNIT V

NATIONAL HUMAN RIGHTS COMMISSION (NHRC)

The National Human Rights Commission (NHRC) of India is an autonomous public body constituted on 12 October 1993 under the Protection of Human Rights Ordinance of 28 September 1993. It was given a statutory basis by The Protection of Human Rights Act, 1993 (TPHRA). The NHRC is the national human rights institution, responsible for the protection and promotion of human rights, defined by the Act as "rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the International Covenants". The Commission undoubtedly has some achievements to its credit. It has succeeded in persuading the Central Government to sign the United Nations Convention against Torture and Other Forms of Cruel, Inhuman and Degrading Punishment or Treatment. It has brought into sharp focus the problem of custodial deaths and taken steps to see that these are not suppressed by the state agencies and that the guilty persons are made to account for their sins of commission and omission. It has also helped in designing specialized training modules on human rights for introduction in the educational and training institutions. The Commission has a wide mandate including civil and political rights, economic, social and cultural rights, and group rights.

NATIONAL COMMISSION FOR SCHEDULED CASTES (NCSC) AND NATIONAL COMMISSION FOR SCHEDULED TRIBES (NCST)

The first Commission for the SCs and the STs was set up in August 1978. It was set up as a National level Advisory Body to advise the government on board policy issues and levels of development of Scheduled Castes and Scheduled Tribes. It was in 1990 that the body was proclaimed Statutory. It was later that the National Commission for Scheduled Caste and Scheduled Tribes was bifurcated by the Constitution (Eighty-Ninth Amendment) Act, 2003 to establish separate Commissions for SCs and STs. The NCST was established in February 2004.

The Functions of both the Commissions can be envisaged as follows:

- To investigate and monitor all matters relating to the safeguards provided for the Scheduled Castes/Scheduled Tribes under this Constitution or under any other law for the time being in force or under any order of the Government and to evaluate the working of such safeguards;
- To inquire into specific complaints with respect to the deprivation of rights and safeguards of the Scheduled Castes/Scheduled Tribes;
- To participate and advise on the planning process of socio- economic development of the Scheduled Castes/Scheduled Tribes and to evaluate the progress of their development under the Union and any State;
- To present to the President, annually and at such other times as the Commission may deem fit, reports upon the working of those safeguards;
- To make in such reports recommendations as to the measures that should be taken by the Union or any State for the effective implementation of those safeguards and to introduce other measures for the protection, welfare and socio-economic development of Scheduled Castes/Scheduled Tribes; and to discharge such other functions in relation to the protection, welfare and development and advancement of the Scheduled Castes /Scheduled Tribes as the President may, subject to the provisions of any law made by Parliament, by rule specify.

NATIONAL COMMISSION FOR WOMEN (NCW)

The National Commission for Women was set up as statutory body in January 1992 under the National Commission for Women Act, 1990 (Act No. 20 of 1990 of Government of India) to:

- Review the Constitutional and Legal safeguards for women;
- Recommend remedial legislative measures; facilitate redressal of grievances and advise the Government on all policy matters affecting women. In its advisory role, the Commission is to participate and advise on the planning process of socioeconomic development of women. The commission is empowered to undertake research and

special studies or investigations into specific problems or situations arising out of discrimination and atrocities on women and recommend measures to deal with these.

Through its annual and other reports, it can make recommendations for the effective implementation of safeguards provided to women in the Constitution. It has a specific task of recommending amendments to meet any lacunae, inadequacies or shortcoming in the existing legislations. The Commission has so far reviewed about 23 laws and made more than 700 recommendations to the government. The Commission has also brought out many special studies.

NATIONAL MINORITIES COMMISSION (NCM)

The Recognition and protection of minority rights under a legal framework has two-fold objectives –firstly to prevent state from being oppressive against the minorities as in a democratic setup government is run by majority, secondly to provide the minority a protective zone whereby they can preserve their separate identity while contributing in national development and progress.

The Constitution of India neither defines the term minority nor provides details relating to the geographical and numerical specification of this concept though it talks about the rights of minorities under Article 29 and 30. In order to preserve the country's secular traditions, to promote national integration and to remove any feeling of inequality and discrimination amongst minorities, the Government of India constituted a Minorities' Commission in 1978 through administrative order which was later on regularized by the National Commission for Minorities Act, 1992.

The Commission discharges the following functions under Section 9 of the Act:

Evaluate the progress of the development of minorities; Monitor the working of the safeguards provided in the Constitution and other enactments; make recommendations to appropriate government for the effective protection of the interests of minorities; look into specific complaints regarding deprivation of rights and safeguards of the minorities and take up such matters with the appropriate authorities; studies into problems arising out of any discrimination against minorities and recommend measures for their removal; conduct studies and researched analysis

on the issues relating to socio-economic and educational development of minorities; suggest appropriate measures in respect of any minority to be undertaken by the appropriate government; make periodical or special reports to the Central Government on any matter relating to minorities and in particular difficulties faced by them; and any other matter which may be referred to it by the Central Government.

INTERNATIONAL SUPERVISORY MECHANISMS FOR HUMAN RIGHTS

The numerous human rights conventions under the framework of the United Nations and the regional systems in Africa, the Americas and Europe have led to the creation of a wide range of mechanisms for monitoring compliance with international human rights laws. This chapter will examine the different procedures, which have been instituted at the international and regional levels to monitor compliance with human rights treaties.

There are two distinctive types of supervisory mechanisms:

a) Treaty-based mechanisms:

supervisory mechanisms enshrined in legally binding human rights instruments or conventions. Within the UN framework these mechanisms are often called ‘treaty bodies’, e.g., the Human Rights Committee and the Committee on the Rights of the Child. The African Commission and future Court of Justice and Human Rights, the European Court of Human Rights and the Inter-American Court and Commission of Human Rights are also treaty bodies.

b) Non-treaty-based mechanisms:

supervisory mechanisms not based on legally binding human rights treaty obligations. Generally, this type of mechanism is based on the constitution or charter of an intergovernmental human rights forum, or on decisions taken by the assembly or a representative body of the forum in question. Under the UN framework, the non-treaty-based mechanisms are referred to as ‘charter-based’ mechanisms, which include the Human Rights Council 1503 procedure, the Universal Peer Review and ‘special procedures. The European Commission against Racism and Intolerance under the Council of Europe is also an example of a regional non-treaty-based mechanism. The

following sections provide an overview first and foremost of the treaty-based mechanisms. The United Nations non-treaty-based mechanisms are dealt with in Part II (1.C). The various **supervisory procedures** established in human rights treaties can be divided into four main groups: Inter-state complaint procedure

A. Reporting procedures

Most human rights treaties include a system of periodic reporting. States parties to them are obliged to report periodically to a supervisory body on the implementation at the domestic level of the treaty in question. As formulated, e.g., in Article 40 of the ICCPR, states parties shall ‘submit reports on the measures they have adopted which give effect to the rights recognized herein and, on the progress, made in the enjoyment of those rights. At the UN level, each treaty body has formulated general guidelines regarding the form and contents of the state reports and their own rules of procedures.

The report is analyzed by the relevant supervisory body, which comments on the report and may request the state concerned to furnish more information. In general, reporting procedures under the different treaty-based mechanisms are meant to initiate and facilitate a ‘constructive dialogue’ between the supervisory body and the state party.

B. Inter-state complaint procedure

Some human rights instruments allow states parties to initiate a procedure against another state party which is thought not to be fulfilling its obligations under the instrument. In most cases, such a complaint may only be submitted if both the claimant and the defendant state have recognized the competence of the supervisory body to receive this type of complaint.

C. Individual complaint procedure

It seems reasonable that individuals, on whose behalf human rights were stipulated in the first place, should be enabled to initiate proceedings to protect their rights. Such a procedure, whereby an individual holds a government directly accountable before an international supervisory body, aims to afford far-reaching

protection to the individual. Several international conventions have created the opportunity for an individual who feels that his or her rights have been violated to bring a complaint alleging a violation of certain treaty rights to the body of experts set up by the treaty for quasi-judicial adjudication or to an international Court (i.e. the European Court, Inter American Court and future African Court of Justice and Human Rights). While there are some procedural variations between the different mechanisms, there are three procedures that all conventions have in common. In order for an individual to bring a case/communication/petition under a human rights convention, the following requirements have to be met:

- The alleged violating state must have ratified the convention invoked by the individual;
- The rights allegedly violated must be covered by the convention concerned; and
- Proceedings before the relevant body may only be initiated after all domestic remedies have been exhausted.

D. Inquiries and other procedures

The group of supervisory mechanisms now discussed includes all procedures that do not fall under those mentioned above. Most involve inquiries, but others may entail initiatives aimed at preventing violations or promoting compliance with specific human rights. The supervisory bodies discussed in the previous section play a rather passive role as they generally cannot initiate proceedings, and are largely dependent on information submitted by governments, NGOs or individual petitioners. Recently, however, several supervisory mechanisms have been established whereby an independent person or group of persons may raise, on the person's or group's own initiative, issues of non-compliance with human rights. Such a body may, for instance, act upon receipt of complaints or take an initiative itself.

Examples of existing inquiry and other procedures discussed here in more detail are the following:

- Article 20 of CAT (Committee against Torture)
- European Committee for the Prevention of Torture (ECPT)

DIRECTIVE PRINCIPLES OF STATE POLICY

- Part IV, Articles 36-51 of the Indian constitution constitutes the Directive Principles of State Policy which contain the broad directives or guidelines to be followed by the State while establishing policies and laws.
- The legislative and executive powers of the state are to be exercised under the purview of the Directive Principles of the Indian Constitution.
- The Indian Constitution was written immediately after India obtained freedom, and the contributors to the Constitution were well aware of the ruined state of the Indian economy as well as the fragile state of the nation's unity. Thus, they created a set of guidelines under the heading Directive Principles for an inclusive development of the society.
- Inspired by the Constitution of Ireland, the Directive Principles contain the very basic philosophy of the Constitution of India, and that is the overall development of the nation through guidelines related to social justice, economic welfare, foreign policy, and legal and administrative matters. The Directive Principles are codified versions of democratic socialist order as conceived by Nehru with an admixture of Gandhian thought. However, the Directive Principles cannot be enforced in a court of law and the State cannot be sued for non-compliance of the same. This indeed makes the Directive Principles a very interesting and enchanting part of the Constitution because while it does stand for the ideals of the nation, these ideals have not been made mandatory.

CATEGORIES:

The Directive Principles are divided into the following three categories:

Socialistic Directives:

This part contains the directives for securing the welfare of the people of India, equal distribution of the material resources of the country protection of the fundamental rights of the children and youth, equal pay for equal work, education etc.

Gandhian Directives:

Under these directives are the guidelines for organizing village Panchayat, prohibition of intoxicating drinks and cow-slaughter, secure living wage, decent standard of life, and to promote cottage industries, to provide free and compulsory education to all children up to 14 years of age etc.

Liberal Intellectual Directives:

In this section there are guidelines for uniform civil code throughout the country and the legislatures to follow in issuing orders or making laws.

Features

In a nutshell, the Directive Principles consist of the following guidelines for the States:

- The State should strive to promote the welfare of the people.
- Maintain social order through social, economic and political justice.
- The State should strive towards removing economic inequality.
- Removal of inequality in status and opportunities.
- To secure adequate means of livelihood for the citizens.
- Equal work opportunity for both men and women.
- Prevent concentration of wealth in specific pockets through uniform distribution of the material resources amongst all the strata of the society.
- Prevention of child abuse and exploitation of workers.
- Protection of children against moral and material abandonment.
- Free legal advice for equal opportunities to avail of justice by the economically weaker section.
- Organization of Village Panchayats which will work as an autonomous body working towards giving justice.
- Assistance to the needy including the unemployed, sick, disabled and old people.
- Ensure proper working conditions and a living wage.
- Promotion of cottage industries in rural areas.
- The state should endeavor towards a uniform civil code for all the citizens of India.

- Free and compulsory education for children below the age of 14 years.
- Economic and educational upliftment of the SC and ST and other weaker sections of the society.
- Prohibition of alcoholic drinks, recreational drugs, and cow slaughter.
- Preservation of the environment by safeguarding the forests and the wild life.
- Protection of monuments, places and objects of historic and artistic interest and national importance against destruction and damage.
- Promotion and maintenance of international peace and security, just and honorable relations between nations, respect for international law and treaty obligations, as well as settlement of international disputes by arbitration.

Implementation of the Directive Principles

As mentioned earlier, unlike the fundamental rights which are guaranteed by the Constitution of India, the Directive Principles do not have a legal sanction and cannot be enforced in a court of law. However, the State is making every effort to implement the Directive Principles in as many sectors as possible. The noteworthy implementation is the 86th constitutional amendment of 2002 which inserted a new article, Article 21-A, making free education for children below the age of 14 compulsory. Prevention of Atrocities Act safeguarding the interests of SC and ST, several Land Reform Acts, Minimum Wage Act (1948), are a few other examples of the implementation of the Directive Principles. Based on the guidelines of the Directive Principles, the Indian Army has participated in 37 UN peace-keeping operations.

Fundamental Rights and Directive Principles of State Policy

Fundamental Rights and Directive Principles of State Policy as enumerated in part III and part IV respectively of the Constitution are the two sides of the same coin. One without the other is incomplete and unfulfilled. The fundamental rights ensure political democracy while the directive principles ensure economic and social democracy.

The objective of the fundamental rights is to provide congenial environment for the fullest development of the personality of the Indian citizens. For the fulfillment of this objective the individual has been given a good number of freedoms. The objective of Directive Principles of State Policy is to provide the individual with socioeconomic and political justice.

1. Justiciability:

The first major difference between Fundamental Rights and Directive Principle is that while the former are justifiable, the latter are non-justifiable. Article 32 gives to the people the right to constitutional remedies which guarantees the legal protection of these rights. People can move to the Supreme Court and high courts for the implementation of the fundamental rights. On the other hand, directive principles are not enforceable.

Article 37 specifically mentions that provisions contained in this part (Part IV Directive Principles) shall not be enforceable by any court. Directive principles neither contain neither legal nor constitutional sanction nor provide for any method by which their non-implementation or violation can be got redressed by the people.

2. Nature of Instructions:

A vital difference between Fundamental Rights and Directive Principles of State Policy is that while the former are of negative and the latter are of positive nature. Fundamental rights impose a number of limitations either on the citizens or on the state. They prohibit the state from doing something e.g. Article 15 states, “The State shall not discriminate against any citizen on grounds only of religion, caste, sex, place of birth or any of them,” Article 21 lay down that “No person shall be deprived of his life or personal liberty.” On the other hand, Directive Principles are positive instructions to the state to attain or to do certain things e.g. to organize village panchayats, to check the concentration of wealth and resources, to introduce prohibition, to protect historical monuments to promote international peace etc

3. Democratic System:

Fundamental Rights lay down the foundation of political democracy whereas the Directive principles lay down the foundation of economic democracy. The freedom of speech and expression, the freedom to form associations or unions, freedom to assemble peacefully etc. all are provided for the operationalization of a democratic system and are the essential political pillars of a democratic system. On the other hand, the Directive Principles aim at the establishment of the socio-economic democratic system in India. Their aim is to put an end to all sorts of exploitation and to establish and maintain economic equality in the Indian Political System through appropriate legislation by the state.

4. Legal Superiority:

Fundamental rights are judicially supreme over the Directive Principles of State Policy. Fundamental Rights are enforceable. These have been given a priority of mention in the constitution. Directive Principles are non-enforceable principles which have been incorporated in the Constitution after the fundamental rights. These features are a source of legal superiority of the latter over the former. In the event of a conflict between Part III and Part IV, the Supreme Court has always upheld the legal supremacy of the fundamental rights. In the case of the State of Madras, Vs. Champakam Dorairajan the Supreme Court held, "The directive principles of the state policy which were expressly made unenforceable by a court cannot over-ride the provisions of Part III which are made enforceable by appropriate writs, orders or directions under Article 32. The directive principles have to conform to and run subsidiary to the chapter on fundamental rights." In 1980, the Supreme Court while delivering judgement in the Minerva Mills case made it quite clear that the pre-eminence or supremacy given to the Directive Principles over the fundamental rights according to the Forty Second constitutional amendments was wrong. The courts have accepted viewpoint that the directive principles are subsidiary and not supreme over the fundamental rights.

5. Operative:

Fundamental Rights have been achieved whereas Directive Principles are yet to be achieved. With the inauguration of the Constitution, part III containing the fundamental rights of the people become operative and people got these constitutionally guaranteed and enforceable rights since the day of the implementation of the constitution. On the other hand, the directive principles of state policy are yet to be attained. Some laws have been enacted to implement some of these principles but most these are yet to be secured by the state.

6. Pressure:

There is legal force behind Fundamental Rights whereas Directive Principles have the force public opinion. The constitution clearly vests the fundamental rights in a constitutional and legal basis and makes these provisions enforceable by the courts. These are binding on the state. Their violation is an offence. On other hand, Directive Principles have been denied a legal basis by the constitution. But the Directive Principles enjoy widespread support of public opinion. The State finds it essential to work for the implementation of these principles under the pressure of public opinion.

7. For State and Citizen:

Fundamental Rights are for citizen whereas Directive Principles are for state. The fundamental rights are given to the people of India so that they may be able to develop their personalities whereas Directive Principles are the directives for the state which would keep in view while formulating national policies. They guide the state in the formulation of national policy.

8. Conflicting:

Due to difference in the nature of fundamental rights and directive principles of state policy there has been tension in the mutual relationship between Part III and Part IV of the constitution. Fundamental rights as enshrined in Part III of the constitution the civil political dimension of Indian democracy. These stands constitutionally granted and guaranteed. The directive principles as enshrined in Part

IV of the constitution constitute the socio-economic dimension of the Indian democracy which the state is to achieve through appropriate legislation.

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